



GATE 308504 Rehabilitation of Hangars 3&4

Solicitation # 140P2026R0060



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PART I – THE SCHEDULE

SECTION A – SOLICITATION / CONTRACT FORM

Solicitation, Offer, and Award (SF-1442)

End of Section A

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NO. 140P2026R0060	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED	PAGE 1	OF 2	PAGES
	IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO. GATE 308504
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7. ISSUED BY NPS, DSC Contracting Services Div 1 Denver Federal Center, Building 50 P.O. Box 25287 Denver CO 80225-0287	CODE PDS	8. ADDRESS OFFER TO Linda_Melnick@ios.doi.gov
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9. FOR INFORMATION CALL	a. NAME Linda Melnick	b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 0000000000
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SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)
GATE 308504 Hangars 3&4 Construction NY Floyd Bennet Field Gateway National Park

a) The National Park Service (NPS), Department of Interior (DOI), Denver Service Center (DSC), is soliciting proposals on a Total Small Business Set Aside to all interested businesses having the capability to perform the work. All responsible sources may submit an offer for consideration in accordance with these and other terms and conditions of the solicitation. The North American Industrial Classification System (NAICS) code is 236220 and the associated small business size standard is \$45M.

b) Estimated Price Range: More than \$10,000,000.

c) An organized pre-proposal site is Thursday May 21, 2026, at 10am ET. See 52.236-27.

d) Information and requirements stated in sections "B" through "J" & attachments noted in section "J" apply to this solicitation and the subsequent contract.

e) Requirements noted in sections K, L, and M apply to this solicitation.

11. The contractor shall begin performance within 10 calendar days and complete it within 487 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See 52.211-10).

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☒ YES ☐ NO	12b. CALENDAR DAYS 10
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13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1300 (hour) local time 06/17/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NO. (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY PDS NPS, DSC Contracting Services Div 1 Denver Federal Center, Building 50 P.O. Box 25287 Denver CO 80225-0287	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>1</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
		Linda Melnick	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA	31c. DATE
		BY	

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SECTION B – PROPOSAL PRICE SCHEDULE B

CONTRACT PRICE SCHEDULE B

SOLICITATION NUMBER: 140P2026R0060

PARK – PMIS: GATE – 308504

DEVELOPED AREA: Floyd Bennett Field

PROJECT TITLE: Hangars 3 & 4 Rehabilitation

Notice: Refer to FAR Clause 52.217-5, Evaluation of Options, as prescribed in FAR 17. Offerors are required to submit, a minimum, an offer that conforms to the solicitation documents with pricing for Base line items and all option line items. Failure to do so may render the proposal unacceptable. On lump-sum line items, provide the total price only. The Government reserves the right to award any or no options at or after the time of award. At the option of the Government, the period for exercise of options at the proposed prices shall extend 180 calendar days from the date of award. Pricing will be evaluated based on what is determined to be the best value to the Government. Options may be exercised in any combination, order, or grouping deemed in the judgment of the Contracting Officer to offer the best value to the Government.

In addition to the offer that conforms to the solicitation documents, offerors are encouraged to submit alternate proposals that will result in cost savings to the Government. Such proposals shall clearly identify why the acceptance of the alternate proposal would be advantageous to the Government, see FAR Clause 52.215-1, Instructions to Offerors – Competitive Acquisition-Alternate II and DSC-36 Clause (Instructions for Submission of Offers and Other Information) in Section L of the Solicitation.

CONTRACT LINE ITEM NUMBER (CLIN)	CONTRACT LINE ITEM (CLI) TITLE	QUANTITY	UNIT OF MEASURE	UNIT PRICE	TOTAL PRICE
1	Hangar Restoration	1	Lump Sum		\$0.00
TOTAL BASE PRICE (Contract Line Item Number 1) -----					\$0.00
2	OPTION 1 – Exterior Utility Improvements (Water, Storm and Sanitary Sewer)	1	Lump Sum		\$0.00
3	OPTION 2 – Exterior Site Restoration	1	Lump Sum		\$0.00
TOTAL PRICE – FOR ALL OPTIONS (Contract Line Item Numbers 2 through 3) -----					\$0.00
TOTAL PROPOSED PRICE – BASE PLUS ALL OPTIONS (Contract Line Item Numbers 1 through 3) -----					\$0.00
All measurement and payment information is included in the project specifications, Section 012700.					

End of Section B

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SECTION C – SPECIFICATIONS / DRAWINGS

The work of this contract is for the construction of:

GATE 308504 Hangars 3&4 Construction NY Floyd Bennet Field Gateway National Park

Project Location: Floyd Bennett Field, 3159 Flatbush Ave, Brooklyn, NY 11234, Hangars 3 & 4

The Work consists of:

Demolition

- Removal of the existing roofs and roof decks (superstructure to remain in place).
- Removal of specific existing masonry interior walls.
- Removal of concrete slabs in Hangars 3 and 4 and select damaged areas.
- Dismantling of exterior masonry walls for rebuilding.
- Selected remediation of hazardous materials, as identified.

Exterior Restoration

- Repairing and rebuilding portions of all masonry facades.
- Repair and replacement of all windows.
- Restoration of the rolling hangar doors.
- Restoration of the painted friezes above the hangar doors.
- Replacement of roofs.

Interior Restoration

- Restoration and replication of interior doors and windows.
- Replacement of concrete slabs.
- Interior masonry wall restoration.

Systems

- Installation of lighting and electrical.
 - Installation of unit heaters in utility and restroom spaces.
 - Installation of two single-user restrooms.
 - Rerouting of utilities (water and storm) around the buildings
- Specifications and drawings are attached and incorporated herein by reference. Refer to section J.

End of Section C

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SECTION D – PACKAGING AND MARKING

Section Does Not Apply

End of Section D

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SECTION E – INSPECTION AND ACCEPTANCE

52.246-12 INSPECTION OF CONSTRUCTION (AUG 1996)

(a) *Definition.* “Work” includes, but is not limited to, materials, workmanship, and manufacture and fabrication of components.

(b) The Contractor shall maintain an adequate inspection system and perform such inspections as will ensure that the work performed under the contract conforms to contract requirements. The Contractor shall maintain complete inspection records and make them available to the Government. All work shall be conducted under the general direction of the Contracting Officer and is subject to Government inspection and test at all places and at all reasonable times before acceptance to ensure strict compliance with the terms of the contract.

(c) Government inspections and tests are for the sole benefit of the Government and do not—

- (1) Relieve the Contractor of responsibility for providing adequate quality control measures;
- (2) Relieve the Contractor of responsibility for damage to or loss of the material before acceptance;
- (3) Constitute or imply acceptance; or
- (4) Affect the continuing rights of the Government after acceptance of the completed work under paragraph (i) of this section.

(d) The presence or absence of a Government inspector does not relieve the Contractor from any contract requirement, nor is the inspector authorized to change any term or condition of the specification without the Contracting Officer’s written authorization.

(e) The Contractor shall promptly furnish, at no increase in contract price, all facilities, labor, and material reasonably needed for performing such safe and convenient inspections and tests as may be required by the Contracting Officer. The Government may charge to the Contractor any additional cost of inspection or test when work is not ready at the time specified by the Contractor for inspection or test, or when prior rejection makes reinspection or retest necessary. The Government shall perform all inspections and tests in a manner that will not unnecessarily delay the work. Special, full size, and performance tests shall be performed as described in the contract.

(f) The Contractor shall, without charge, replace or correct work found by the Government not to conform to contract requirements, unless in the public interest the Government consents to accept the work with an appropriate adjustment in contract price. The Contractor shall promptly segregate and remove rejected material from the premises.

(g) If the Contractor does not promptly replace or correct rejected work, the Government may—

- (1) By contract or otherwise, replace or correct the work and charge the cost to the Contractor; or
- (2) Terminate for default the Contractor’s right to proceed.

(h) If, before acceptance of the entire work, the Government decides to examine already completed work by removing it or tearing it out, the Contractor, on request, shall promptly furnish all necessary facilities, labor, and material. If the work is found to be defective or nonconforming in any material respect due to the fault of the Contractor or its Subcontractors, the Contractor shall defray the expenses of the examination and of satisfactory reconstruction. However, if the work is found to meet contract requirements, the Contracting Officer shall make an equitable adjustment for the additional services involved in the examination and reconstruction, including, if completion of the work was thereby delayed, an extension of time.

(i) Unless otherwise specified in the contract, the Government shall accept, as promptly as practicable after completion and inspection, all work required by the contract or that portion of the work the Contracting Officer determines can be accepted separately. Acceptance shall be final and conclusive except for latent defects, fraud, gross mistakes amounting to fraud, or the Government’s rights under any warranty or guarantee.

(End of clause)

52.246-13 -DISMANTLING, DEMOLITION, OR REMOVAL OF IMPROVEMENTS (AUG 1996)

- (a) Unless otherwise designated by the specifications, all workmanship performed under the contract is subject to Government inspection at all times and places where dismantling or demolition work is being performed. The Contractor shall furnish promptly, and at no increase in contract price, all reasonable facilities, labor,

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and materials necessary for safe and convenient inspection by the Government. The Government shall perform inspections in a manner that will not unduly delay the work

(b) The Contractor is responsible for damage to property caused by defective workmanship. The Contractor shall promptly segregate and remove from the premises any unsatisfactory facilities, materials, and equipment used in contract performance, and promptly replace them with satisfactory items. If the Contractor fails to proceed at once in a workmanlike manner with performance of the work or with the correction of defective workmanship, the Government may-

- (1) By contract or otherwise, replace the facilities, materials, and equipment or correct the workmanship and charge the cost to the Contractor; and
- (2) Terminate for default the Contractor's right to proceed. The Contractor and any surety shall be liable, to the extent specified in the contract for any damage or cost of repair or replacement.

(End of clause)

End of Section E

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SECTION F – DELIVERIES OR PERFORMANCE

52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 487 calendar days after NTP. The time stated for completion shall include final cleanup of the premises.

(End of clause)

52.211-12 LIQUIDATED DAMAGES—CONSTRUCTION (SEPT 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **\$1,365.00** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.211-13 TIME EXTENSIONS (SEPT 2000)

Time extensions for contract changes will depend upon the extent, if any, by which the changes cause delay in the completion of the various elements of construction. The change order granting the time extension may provide that the contract completion date will be extended only for those specific elements related to the changed work and that the remaining contract completion dates for all other portions of the work will not be altered. The change order also may provide an equitable readjustment of liquidated damages under the new completion schedule.

(End of clause)

52.236-15 SCHEDULES FOR CONSTRUCTION CONTRACTS (DEVIATION JAN 2026)

(a)

(1) Within five days after the work commences on the contract or another period of time determined by the Contracting Officer, the Contractor shall prepare and submit to the Contracting Officer for approval a practicable schedule showing the order in which the Contractor proposes to perform the work, and the dates on which the Contractor contemplates starting and completing the work (including acquiring materials, plant, and equipment).

(2) The schedule shall be in the form of a progress chart of suitable scale to indicate appropriately the percentage of work scheduled for completion by any given date during the period.

(3) If the Contractor fails to submit a schedule within the time prescribed, the Contracting Officer may withhold approval of progress payments until the Contractor submits the required schedule.

(b) The Contractor shall continually update the actual progress in the schedule and shall submit it to the Contracting Officer by the means prescribed in the contract for transmittals or as directed by the Contracting Officer.

(c)

(1) If the Contractor falls behind the approved schedule, the Contractor shall take steps necessary to recover lost time and execute in accordance with the approved schedule, without additional cost to the Government.

(2) Such steps may include increasing the number of shifts, overtime operations, days of work, and/or the amount of construction plant.

(3) The Contractor shall submit, for approval, supplementary schedule(s) that demonstrate how the lost time will be recovered.

(d) If the Contractor does not recover the lost time, the Contracting Officer may determine that the Contractor is not prosecuting the work with sufficient diligence to ensure completion within the time specified in the contract. Upon making this determination, the Contracting Officer may terminate the Contractor's right to proceed with the work, or any separable part of it, in accordance with the default terms of this contract.

(End of clause)

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52.242-14 SUSPENSION OF WORK (APR 1984)

(a) The Contracting Officer may order the Contractor, in writing, to suspend, delay, or interrupt all or any part of the work of this contract for the period of time that the Contracting Officer determines appropriate for the convenience of the Government.

(b) If the performance of all or any part of the work is, for an unreasonable period of time, suspended, delayed, or interrupted (1) by an act of the Contracting Officer in the administration of this contract, or (2) by the Contracting Officer's failure to act within the time specified in this contract (or within a reasonable time if not specified), an adjustment shall be made for any increase in the cost of performance of this contract (excluding profit) necessarily caused by the unreasonable suspension, delay, or interruption, and the contract modified in writing accordingly. However, no adjustment shall be made under this clause for any suspension, delay, or interruption to the extent that performance would have been so suspended, delayed, or interrupted by any other cause, including the fault or negligence of the Contractor, or for which an equitable adjustment is provided for or excluded under any other term or condition of this contract.

(c) A claim under this clause shall not be allowed—

(1) For any costs incurred more than 20-days before the Contractor shall have notified the Contracting Officer in writing of the act or failure to act involved (but this requirement shall not apply as to a claim resulting from a suspension order); and

(2) Unless the claim, in an amount stated, is asserted in writing as soon as practicable after the termination of the suspension, delay, or interruption, but not later than the date of final payment under the contract.

(End of clause)

End of Section F

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SECTION G – CONTRACT ADMINISTRATION DATA

1452.201-70 AUTHORITIES AND DELEGATIONS (SEPT 2011)

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the Contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:
 - (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the Contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government.
- (d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3-days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.
- (e) The Contracting Officer shall respond in writing within 30-days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.
- (f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.
- (g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

1452.204-70 RELEASE OF CLAIMS—DEPARTMENT OF THE INTERIOR (JUL 1996)

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

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NOTICE TO CONTRACTORS - CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (DEC 2015)

1. [FAR 42.1502](#) directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by [FAR 42.15](#).
2. The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in CPARS for Government use in evaluating past performance as part of a source selection action.
3. We request that you furnish the Contracting Officer with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than **30-days after award**. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.
4. When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.
5. Within 60-days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.
 - a. Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment.
 - b. Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.
 - c. All information provided should be reviewed for accuracy prior to submission.
 - d. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".
 - e. Your response is due within 60-calendar days after receipt of the CPAR. On day 15, the evaluation will become available in CPARS marked as "Pending" with or without comments and whether or not it has been closed.
 - f. If you do not sign and submit the CPAR within 60-days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the Contractor on (date). The Contractor neither signed nor offered comment in response to this assessment."
6. The following guidelines apply concerning your use of the past performance evaluation:
 - a. Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.
 - b. Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.
 - c. Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.
7. If you wish to discuss a past performance evaluation, you should request a meeting in writing to the Contracting Officer no later than seven (7)-days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.
8. A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

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DOI AAAP-0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INVOICE PROCESSING PLATFORM SYSTEM (FEB 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. DCS Cover Sheet
2. Completed copy of the CMR's final Construction Payment Request Checklist (Submit only with the formal submittal to IPP);
3. Completed copy of the Pay Estimate Form (including signed certification of Subcontractor payments);
4. Completed copy of the Limitations on Subcontracting Report
5. Information required by contract clause 52.232-27, Prompt Payment for Construction Contracts;
6. A copy of the current construction schedule (refer to project specification section 013216); and
7. A copy of the current Schedule of Values. (refer to project specification section 013216).

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email [Invoice Processing Platform - Contact Us \(treasury.gov\)](mailto:Invoice Processing Platform - Contact Us (treasury.gov)) or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Clause)

End of Section G

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SECTION H – SPECIAL CONTRACT REQUIREMENTS

SPECIAL REQUIREMENT 1: INVOICE PROCESSING

To ensure the timely and efficient processing of contractor invoices, the contractor is required to submit a draft invoice package, which must include all necessary documentation as specified in the Section G clause titled "Electronic Invoicing and Payment Requirements – Invoice Processing Platform System (FEB 2021)." This draft invoice package should be submitted to the National Park Service Contracting Officer's Representative (COR) and, if applicable, the Construction Management Representative (CMR) assigned to the contract, at least seven (7) calendar days prior to the intended submission to the Invoice Processing Platform (IPP) system. Upon receipt of the draft invoice package, the COR will provide a signed cover letter, which the contractor must upload into the IPP system along with their final invoice package

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. DSC Signed cover sheet
2. Completed copy of the CMR's final Construction Payment Request Checklist
3. Completed copy of the Pay Estimate Form (including signed certification of subcontractor payments)
4. Completed copy of the Limitations on Subcontracting Report
5. Information required by contract clause 52.232-27, Prompt Payment for Construction Contracts
6. A copy of the current construction schedule
7. A copy of the current Schedule of Values. (refer to project specification section 013216)

(End of Local Clause)

SPECIAL REQUIREMENT 2: PERFORMANCE OF WORK BY THE CONTRACTOR

The Contractor shall perform on the site, and with its own organization, work equivalent to at least 15% Fifteen percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction, and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of Local Clause)

SPECIAL REQUIREMENT 3: OPTION FOR ADDITIONAL SERVICES—SEPARATELY PRICED LINE ITEMS

The Government may require the delivery of the numbered line items identified in the Schedule as option items at the price stated in the Schedule. The Contracting Officer may unilaterally exercise the option by written notice to the Contractor within **180-days** after contract award. Performance of added line-item tasks shall be at the price negotiated in the contract Schedule.

(End of clause)

SPECIAL REQUIREMENT 4: KEY PERSONNEL

- (a) The Contractor shall assign to this contract the following key personnel:

Project Manager: _____
 Job Site Superintendent: _____
 Job Site Quality Control Manager: _____

- b) During the first **90 days** of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within **15-calendar days** after the occurrence of any of these events and provide the information required by paragraph (c) below. After

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the initial **90-day** period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least **15-days** prior to making any permanent substitutions.

- (c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within **15-calendar days** after receipt of all required information of the decision on substitutions. This clause will be modified to reflect any approved changes of key personnel.

(End of clause)

SPECIAL REQUIREMENT 5: CONSTRUCTION CONTRACT ADMINISTRATION - FEDERAL ACQUISITION REGULATIONS 36.211(B).

Federal Acquisition Regulation (FAR) 36.211(b) requires agencies provide description of policies and procedures that apply to definitization of equitable adjustments for change orders under construction contracts and data on the time required to definitize equitable adjustments for change orders under construction contracts. This information can be found at:

<https://www.doi.gov/pam/acquisition/policy/constructioncontract>.

SPECIAL REQUIREMENT 6: POST-AWARD MODIFICATION PROPOSALS - PRICE BREAKDOWNS

All subsequent contract modification proposals must provide the following details:

- (a) The Contractor shall furnish a price breakdown, itemized as required and within the time specified by the Contracting Officer.
- (b) The price breakdown—
- (1) Must include sufficient detail to permit an analysis of profit, and of all costs for—
 - (i) Material;
 - (ii) Labor;
 - (iii) Equipment;
 - (iv) Subcontracts; and
 - (v) Overhead; and
 - (2) Must cover all work involved in the modification, whether the work was deleted, added, or changed.
- (c) The Contractor must provide similar price breakdowns to support any amounts claimed for subcontracts.
- (1) Subcontract work must be competed among three independent firms to establish a competitive price fair and reasonable range. At minimum, offers for subcontract work must be received from a minimum of two independent firms. If the CO determines there are circumstances beyond the Prime Contractors control prohibiting competitive offers, then, the Prime Contractor shall provide similar price breakdowns to support any amounts claimed for subcontracts.
- (d) The Contractor's proposal shall include a justification for any time extension proposed.

(End of local Clause)

SPECIAL REQUIREMENT 7: CONSENT OF SURETY

- (a) When any contract is modified, the contracting officer shall obtain the consent of surety if-
- (1) An additional bond is obtained from other than the original surety;

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(2) No additional bond is required and-

(i) The modification is for new work beyond the scope of the original contract; or

(ii) The modification does not change the contract scope but changes the contract price (upward or downward) by more than 25 percent or \$50,000; or

(3) Consent of surety is required for a novation agreement (see [subpart 42.12](#)).

(a) When a contract for which performance or payment is secured by any of the types of security listed in [28.204](#) is modified as described in paragraph (a) of this subsection, no consent of surety is required.

(b) Agencies shall use [Standard Form 1414](#), Consent of Surety, for all types of contracts.

(End of Local Clause)

End of Section H

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PART II – CONTRACT CLAUSES

SECTION I – CONTRACT CLAUSES

CLAUSES INCORPORATED BY REFERENCE

The following contract clauses pertinent to this section are incorporated by reference (by Citation Number, Title, and Date) per the clause at FAR “52.252-2 CLAUSES INCORPORATED BY REFERENCE” in Section I of this contract. See FAR 52.252-2 for an internet address (if specified) for electronic access to a clause’s full text.

Federal Acquisition Regulation: <https://www.acquisition.gov/far/>

Department of the Interior Acquisition Regulation (CFR, Title 48, Chapter 14): http://www.ecfr.gov/cgi-bin/text-idx?SID=46fff09635987db3af784ea3c7efc2e0&mc=true&tpl=/ecfrbrowse/Title48/48cfrv5_02.tpl#1400

52.202-1	DEFINITIONS (JUN 2020)
52.203-3	GRATUITIES (APR 1984)
52.203-5	COVENANT AGAINST CONTINGENT FEES (MAY 2014)
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020)
52.203-7	ANTI-KICKBACK PROCEDURES (JUN 2020)
52.203-8	CANCELLATION, RECESSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020)
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS (OCT 2016)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)
52.204-27	PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUNE 2023)
52.209-6	PROTECTING THE GOVERNMENT’S INTEREST WHEN SUB-CONTRACTING WITH CONTRACTOR’S DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (JAN 2025)
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018).
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015)
52.210-1	MARKET RESEARCH (DEVIATION JULY 2025)
52.215-2	AUDIT AND RECORDS-NEGOTIATIONS (JUN 2020)
52.215-10	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST AND PRICING DATA (AUG 2011)
52.215-11	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA—MODIFICATIONS (JUN 2020)
52.215-12	SUBCONTRACTOR CERTIFIED COST AND PRICING DATA (JUN 2020)
52.215-13	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA—MODIFICATIONS (JUN 2020)
52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS (OCT 2010)
52.215-17	WAIVER OF FACILITIES CAPITAL COST OF MONEY (OCT 1997)
52.215-19	NOTIFICATION OF OWNERSHIP CHANGES (OCT 1997)
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION JAN 2026)
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION JAN 2026)
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION JAN 2026)
52.222-3	CONVICT LABOR (JUN 2003)
52.222-4	CONTRACT WORK HOURS AND SAFETY STANDARDS-OVERTIME COMPENSATION (MAR 2018)
52.222-6	CONSTRUCTION WAGE RATE REQUIREMENTS (AUG 2018)

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52.222-7 WITHHOLDING OF FUNDS (MAY 2014)
 52.222-8 PAYROLLS AND BASIC RECORDS (JUL 2021)
 52.222-10 COMPLIANCE WITH COPELAND ACT REQUIREMENTS (FEB 1988)
 52.222-11 SUBCONTRACTS (LABOR STANDARDS) (MAY 2014)
 52.222-12 CONTRACT TERMINATION - DEBARMENT (MAY 2014)
 52.222-13 COMPLIANCE WITH CONSTRUCTION WAGE RATE REQUIRMENTS AND RELATED REGULATIONS (MAY 2014)
 52.222-14 DISPUTES CONCERNING LABOR STANDARDS (FEB 1988)
 52.222-15 CERTIFICATION OF ELIGIBILITY (MAY 2014)
 52.222-19 CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)
 52.222-20 CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES AND EQUIPMENT EXCEEDING \$15,000 (JUNE 2020)
 52.222-30 CONSTRUCTION WAGE RATE REQUIREMENTS – PRICE ADJUSTMENT (NONE OR SEPARATELY SPECIFIED (PRICING METHOD)) (AUG 2018)
 52.222-35 EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)
 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)
 52.222-37 EMPLOYMENT REPORTS ON VETERANS (JUN 2020)
 52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)
 52.222-50 COMBATING TRAFFICKING IN PERSONS (OCT 2025)
 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)
 52.222-62 PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (JAN 2022)
 52.223-12 MAINTENANCE, SERVICE, REPAIR, OR DISPOSAL OF REFRIGERATION EQUIPMENT AND AIR CONDITIONERS (MAY 2024)
 52.223-20 AEROSOLS (MAY 2024)
 52.223-21 FOAMS (MAY 2024)
 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2021)
 52.226-7 DRUG-FREE WORKPLACE (MAY 2024)
 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
 52.227-1 AUTHORIZATION AND CONSENT (JUN 2020)
 52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020)
 52.227-4 PATENT INDEMNITY—CONSTRUCTION CONTRACTS (DEC 2007)
 52.227-17 RIGHTS IN DATA – SPECIAL WORKS (DEC 2007)
 52.228-2 ADDITIONAL BOND SECURITY (OCT 1997)
 52.228-5 INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
 52.228-12 PROSPECTIVE SUBCONTRACTOR REQUESTS FOR BONDS (DEC 2022)
 52.228-14 IRREVOCABLE LETTER OF CREDIT (NOV 2014)
 52.229-3 FEDERAL, STATE, AND LOCAL TAXES (DEVIATION SEP 2025)
 52.232-5 PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)
 52.232-17 INTEREST (MAY 2014)
 52.232-23 ASSIGNMENT OF CLAIMS (MAY 2014)
 52.232-27 PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2017)
 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER – SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)
 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS CONTRACTORS (MAR 2023)
 52.233-1 DISPUTES (MAY 2014) – ALTERNATE 1 (DEC 1991)
 52.233-3 PROTEST AFTER AWARD (AUG 1996)
 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)
 52.240-1 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES (NOV 2024)
 52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017)
 52.242-13 BANKRUPTCY (JUL 1995)
 52.243-4 CHANGES (DEVIATION SEP 2025)
 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)
 52.246-21 WARRANTY OF CONSTRUCTION (MAR 1994)

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- 52.248-3 VALUE ENGINEERING – CONSTRUCTION (OCT 2025)
52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012),
ALT 1 (SEP 1996)
52.249-10 DEFAULT (FIXED-PRICE CONSTRUCTION) ALTERNATE I (APR 1984)
52.253-1 COMPUTER GENERATED FORMS (JAN 1991)

52.203-14 DISPLAY OF HOTLINE POSTER(S) (NOV 2021)

(a) *Definition.*

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) *Display of fraud hotline poster(s).* Except as provided in paragraph (c)—

- (1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites-
 - (i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and
 - (ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.
- (2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.
- (3) Any required posters may be obtained as follows: Downloadable hotline posters as well as instructions for obtaining a hard copy poster are available at <http://www.doioig.gov/hotline>.

<i>Poster(s)</i>	<i>Obtain From</i>

- (i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and
 - (ii) The website(s) or other contact information for obtaining the poster(s).
- (c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.
- (d) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation [3.1004](#)(b)(1) on the date of subcontract award, except when the subcontract—
- (1) Is for the acquisition of a commercial product or commercial service; or
 - (2) Is performed entirely outside the United States.

(End of clause)

52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)

- (e) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at [41 U.S.C. 4712](#) and Federal Acquisition Regulation (FAR) [3.900](#) through [3.905](#).
- (f) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under [41 U.S.C. 4712](#), as described in FAR [3.900](#) through [3.905](#).
- (g) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

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(End of clause)

52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)

(a) *Definitions.* As used in this clause—

Kaspersky Lab covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity;
or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

(b) *Prohibition.* Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

- (1) Providing any Kaspersky Lab covered article that the Government will use on or after October 1, 2018; and
- (2) Using any Kaspersky Lab covered article on or after October 1, 2018, in the development of data or deliverables first produced in the performance of the contract.

(c) *Reporting requirement.*

- (1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or the Contractor is notified of such by a Subcontractor at any tier or any other source, the Contractor shall report, in writing, to the Contracting Officer or, in the case of the Department of Defense, to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (c)(1) of this clause:

- (i) Within 3 business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
- (ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

(d) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

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52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES AND EQUIPMENT (NOV 2021)

(a) *Definitions. As used in this provision—*

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People’s Republic of China.

Covered telecommunications equipment or services means-

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means-

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening.
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 ([50 U.S.C. 4817](#)).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

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Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) *Prohibition.*

- (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR [4.2104](#).
- (2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR [4.2104](#). This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) *Exceptions.* This clause does not prohibit contractors from providing-

- (1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) *Reporting requirement.*

- (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

- (2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause.

- (i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
- (ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

- (e) *Subcontracts.* *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

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(End of clause)

52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – PROHIBITION (DEC 2023)

(a) *Definitions.* As used in this clause—

Covered article, as defined in [41 U.S.C. 4713\(k\)](#), means—

- (1) Information technology, as defined in [40 U.S.C. 11101](#), including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 ([47 U.S.C. 153](#));
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see [32 CFR part 2002](#)); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in [41 CFR 201–1.303\(d\)](#) and [\(e\)](#):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by [50 U.S.C. 3003\(4\)](#), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

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National security system, as defined in [44 U.S.C. 3552](#), means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.*

- (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:
 - (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
 - (ii) For all other solicitations and contracts DHS FASCSA orders apply.
- (2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).
- (3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.
- (4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR [4.2304](#)(c)). However, see paragraph (c) of this clause.
- (5)
 - (i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:
 - (A) Name of the product or service provided to the Government;
 - (B) Name of the covered article or source subject to a FASCSA order;
 - (C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;
 - (D) Brand;
 - (E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
 - (F) Item description;

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(G) Reason why the applicable covered article or the product or service is being provided or used;

- (ii) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A Contracting Officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.*

- (1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.
- (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

- (i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

- (ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

- (i) Within 3 business days from the date of such identification or notification:

- (A) Contract number;
- (B) Order number(s), if applicable;
- (C) Name of the product or service provided to the Government or used during performance of the contract;
- (D) Name of the covered article or source subject to a FASCSA order;
- (E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;
- (F) Brand;
- (G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (H) Item description; and
- (I) Any readily available information about mitigation actions undertaken or recommended.

- (ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

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(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.*

- (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.
- (2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

52.215-8 ORDER OF PRECEDENCE-UNIFORM CONTRACT FORMAT (OCT 1997)

Any inconsistency in this solicitation or contract shall be resolved by giving precedence in the following order:

- (a) The Schedule (excluding the specifications).
- (b) Representations and other instructions.
- (c) Contract clauses.
- (d) Other documents, exhibits, and attachments.
- (e) The specifications.

52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED OR PRICING DATA-MODIFICATIONS (NOV 2021) IV

- (a) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data for modifications under this contract, for price adjustments expected to exceed the threshold set forth in Federal Acquisition Regulation (FAR) [15.403-4\(a\)\(1\)](#) on the date of the agreement on price or the date of the award, whichever is later, the Contractor may submit a written request for exception by submitting the information described in paragraphs (a)(1)(i) and (ii) of this clause. If the threshold for submission of certified cost or pricing data specified in FAR [15.403-4\(a\)\(1\)](#) is adjusted for inflation as set forth in FAR [1.109\(a\)](#), then pursuant to FAR [1.109\(d\)](#) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable-
 - (i) *Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.
 - (ii) *Information on modifications of contracts or subcontracts for commercial products or commercial services.*
 - (A) If-
 - (1) The original contract or subcontract was granted an exception from certified cost or pricing data requirements because the price agreed upon was based on adequate price competition or prices set by law or regulation, or was a contract or subcontract for the acquisition of a commercial product or commercial service; and
 - (2) The modification (to the contract or subcontract) is not exempted based on one of these exceptions, then the Contractor may provide information to establish that the modification would not change the contract or subcontract from a contract or subcontract for the acquisition of a commercial product or commercial service, to a contract or subcontract for the acquisition of other than a commercial product or commercial service.

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(B) For a commercial product and commercial service exception, the Contractor shall provide, at a minimum, information on prices at which the same item or similar items have previously been sold that is adequate for evaluating the reasonableness of the price of the modification. Such information may include-

- (1) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities.
- (2) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market.
- (3) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

- (2) The Contractor grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this clause, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the Contractor's determination of the prices to be offered in the catalog or marketplace.

b) *Requirements for certified cost or pricing data.* If the Contractor is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

- (1) The Contractor shall submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in [Table 15-2](#) of FAR [15.408](#), which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in [Table 15-2](#) are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.
- (2) As soon as practicable after agreement on price, but before award (except for unpriced actions), the Contractor shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR [15.406-2](#).

(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022) (DEVIATION OCT 2022)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—
 - (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
 - (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
- (c) Applicability. This clause applies only to—
 - (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

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- (4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;
 - (5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and
 - (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) Independent contractors. An independent contractor shall be considered a subcontractor.
- (e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—
- (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;
 - (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
 - (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
 - (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.
- (f) The Contractor shall comply with the limitations on subcontracting as follows:
- (1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause—
[Contracting Officer check as appropriate.]
 - ☐ By the end of the base term of the contract and then by the end of each subsequent option period; or
 - ☐ By the end of the performance period for each order issued under the contract.
 - (2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.
- (g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.
- (1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

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- (2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION. (DEVIATION JAN 2026)

(a) *Definitions.* As used in this clause—

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern—

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.
 - (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.
- (b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:
- (1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.
 - (2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.
 - (3) For long-term contracts-
 - (i) Within 60 to 120 days prior to the end of the fifth year of the contract; and
 - (ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.
- (c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.
- (d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—
- (1) Was set aside for small business and has a value above the simplified acquisition threshold;
 - (2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
 - (3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for

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Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under *NAICS Code* _____ assigned to *contract number* _____.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [Contractor to sign and date and insert authorized signer's name and title. _____]

(End of clause)

52.222-55 MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026. DEVIATION (OCT 2023)

(a) Definitions. As used in this clause—

United States means the 50 states, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act (43 U.S.C. 1331, *et seq.*).

Worker –

(1)

(i) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 14026, and-

(A) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV);

(B) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and

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(C) Regardless of the contractual relationship alleged to exist between the individual and the employer.

- (ii) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c).
- (iii) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

(2)

- (i) A worker performs *on* a contract if the worker directly performs the specific services called for by the contract; and
- (ii) A worker performs in connection with a contract if the worker's work activities are necessary to the performance of a contract but are not the specific services called for by the contract.

(b) Executive Order Minimum wage rate.

- (1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a minimum hourly wage rate of \$15.00 per hour beginning January 30, 2022.
- (2) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2023, and annually thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90-days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on <https://www.sam.gov> (or any successor website), and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract.

(3)

- (i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance but will not otherwise include any amount for general and administrative costs, overhead, or profit.
- (ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any subcontractor requests for such price adjustment.
- (iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute.
- (4) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause.
- (5) A pay period under this clause may not be longer than semi-monthly but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued.
- (6) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 23.230, Deductions.
- (7) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof.
- (8) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage

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law or any applicable law or municipal ordinance or any applicable contract establishing a minimum wage higher than the E.O. 14026 minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart.

- (9) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate.
- (10) The Contractor shall follow the policies and procedures in 29 CFR 23.240(b) and 23.280 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than \$30 a month in tips.

(c)

- (1) This clause applies to workers as defined in paragraph (a). As provided in that definition-

- (i) Workers are covered regardless of the contractual relationship alleged to exist between the contractor or subcontractor and the worker;
- (ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and
- (iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered.

- (2) This clause does not apply to-

- (i) Contracts or subcontracts to which the States of Texas, Louisiana, or Mississippi, including their agencies, are a party;
- (ii) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., i.e. those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts;
- (iii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and 214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to-
 - (A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a);
 - (B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b); and
 - (C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

- (d) Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/agencies/whd/government-contracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

(e) Payroll Records.

- (1) The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker:
 - (i) Name, address, and social security number;
 - (ii) The worker's occupation(s) or classification(s);
 - (iii) The rate or rates of wages paid;

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(iv) The number of daily and weekly hours worked by each worker;

(v) Any deductions made; and

(vi) Total wages paid.

- (2) The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer.
- (3) The Contractor shall make a copy of the contract available, as applicable, for inspection or transcription by authorized representatives of the Administrator.
- (4) Failure to comply with this paragraph (e) shall be a violation of 29 CFR 23.260 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected.
- (5) Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.
- (f) Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.
- (g) Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld from the Contractor under this or any other Federal contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.
- (h) Disputes. Department of Labor has set forth in 29 CFR 23.510, Disputes concerning contractor compliance, the procedures for resolving disputes concerning a contractor's compliance with Department of Labor regulations at 29 CFR part 23. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.
- (i) Antiretaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause or has testified or is about to testify in any such proceeding.
- (j) Subcontractor compliance. The Contractor is responsible for subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due subcontractor workers.
- (k) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of clause)

52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS. (APR 2026)

Addressing DEI Discrimination by Federal Contractors (Deviation APR 2026)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

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- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
- (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

52.223-2 REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause-

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) ([7 CFR 4270.2](#)).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

- (1) That are listed by USDA in a procurement guideline and available at <https://www.biopreferred.gov/resources/categories.html>.
- (2) For which USDA has provided purchasing recommendations (available at <https://www.biopreferred.gov>) or ([7 CFR Part 4270](#)).
- (b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and
- (c) Submit this report no later than—
 - (1) October 31 of each year during contract performance; and
 - (2) At the end of contract performance.

(End of clause)

52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA ALT I (JULY 1995)

- (a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

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- (b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (if none, insert <i>None</i>)	Identification No.

- (c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.
- (d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.
- (e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.
- (f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.
- (g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
- (h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
- (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-
 - (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;
 - (ii) Obtain medical treatment for those affected by the material; and
 - (iii) Have others use, duplicate, and disclose the data for the Government for these purposes.
 - (2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
 - (3) The Government is not precluded from using similar or identical data acquired from other sources.
- (i) Except as provided in paragraph (i)(2), the Contractor shall prepare and submit a sufficient number of Material Safety Data Sheets (MSDS's), meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous materials identified in paragraph (b) of this clause.
- (1) For items shipped to consignees, the Contractor shall include a copy of the MSDS's with the packing list or other suitable shipping document which accompanies each shipment. Alternatively, the Contractor is permitted to transmit MSDS's to consignees in advance of receipt of shipments by consignees, if authorized in writing by the Contracting Officer.
 - (2) For items shipped to consignees identified by mailing address as agency depots, distribution centers or customer supply centers, the Contractor shall provide one copy of the MSDS's in or on each shipping container. If affixed to the outside of each container, the MSDS's must be placed in a weather resistant envelope.

(End of clause)

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52.223-9 ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL CONTENT FOR EPA-DESIGNATED ITEMS—ALTERNATE I (MAY 2008)

(a) *Definitions.* As used in this clause—

“Postconsumer material” means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of “recovered material.”

“Recovered material” means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor shall execute the following certification required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(i)(2)(C)):

CERTIFICATION

I, _____ (name of certifier), am an officer or employee responsible for the performance of this contract and hereby certify that the percentage of recovered material content for EPA-designated items met the applicable contract specifications or other contractual requirements.

Signature of the Officer or Employee

Typed Name of the Officer or Employee

Title

Name of Company, Firm, or Organization

Date

(End of certification)

(a) The Contractor, on completion of this contract, shall—

- (1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and
- (2) Submit this estimate to Matt_Kutch@nps.gov and Linda_Melnick@ios.doi.gov

(End of clause)

52.223-10 WASTE REDUCTION PROGRAM (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause-

Recycling means the series of activities, including collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use in the form of raw materials in the manufacture of products other than fuel for producing heat or power by combustion.

Waste prevention means any change in the design, manufacturing, purchase, or use of materials or products (including packaging) to reduce their amount or toxicity before they are discarded. Waste prevention also refers to the reuse of products or materials.

Waste reduction means preventing or decreasing the amount of waste being generated through waste prevention, recycling, or purchasing recycled and environmentally preferable products.

(b) The Contractor shall establish a program to promote cost-effective waste reduction in all operations and facilities covered by this contract. The Contractor’s programs shall comply with applicable Federal, State, and local requirements, specifically including Section 6002 of the Resource Conservation and Recovery Act ([42 U.S.C.6962](#), *etseq.*) and implementing regulations ([40 CFR Part 247](#)).

(End of clause)

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52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (MAY 2024)

(a) *Definitions.* As used in this clause—

Global warming potential means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

High global warming potential hydrofluorocarbons means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at [40 CFR part 82, subpart G](https://www.epa.gov/snap/), with supplemental tables of alternatives available at (<http://www.epa.gov/snap/>)

Hydrofluorocarbons means compounds that only contain hydrogen, fluorine, and carbon.

Ozone-depleting substance, means any substance the Environmental Protection Agency designates in [40 CFR part 82](https://www.ecfr.gov/current/title-40/chapter-I/subchapter-C/part-82) as—

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by [42 U.S.C. 7671j](https://www.uscourts.gov/uscourt/cases/42-1) (b), (c), (d), and (e) and [40 CFR part 82, subpart E](https://www.ecfr.gov/current/title-40/chapter-I/subchapter-C/part-82), as follows:

Warning: Contains (or manufactured with, if applicable) * [REDACTED], a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at [40 CFR part 82, subpart G](https://www.epa.gov/snap/), with supplemental tables available at <http://www.epa.gov/snap/>.

(End of clause)

52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](https://www.ecfr.gov/current/title-7/chapter-I/subchapter-B/part-81)).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](https://www.ecfr.gov/current/title-42/chapter-I/subchapter-C/part-69)).

Sustainable products and services means:

- (1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](https://www.uscourts.gov/uscourt/cases/42-1)) ([40 CFR part 247](https://www.ecfr.gov/current/title-40/chapter-I/subchapter-C/part-247)) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).
- (2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](https://www.uscourts.gov/uscourt/cases/42-1)) ([10 CFR part 436, subpart C](https://www.ecfr.gov/current/title-10/chapter-III/subchapter-C/part-436)) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).
- (3) Biobased products meeting the content requirement of the USDA under the BioPreferred® program ([7 U.S.C. 8102](https://www.uscourts.gov/uscourt/cases/7-1)) (7 CFR part 4270) (<https://www.biopreferred.gov>).

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- (4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 76711](#)) ([40 CFR part 82, subpart G](#)) (<https://www.epa.gov/snap>).

(b) *Requirements.*

- (1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.
- (2) The Contractor shall ensure that the sustainable products and services required by this contract are—
 - (i) Delivered to the Government;
 - (ii) Furnished for use by the Government;
 - (iii) Incorporated into the construction of a public building or public work; and
 - (iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

- (c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which statutory purchasing programs apply to a specific product or service

(End of clause)

52.225-11 BUY AMERICAN – CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (NOV 2023)

(a) *Definitions.* As used in this clause—

Caribbean Basin country construction material means a construction material that—

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item—

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) [2.101](#));
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in [46 U.S.C.40102\(4\)](#), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or Subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are

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evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR [25.105](#).

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR [25.105](#).

Designated country means any of the following countries:

- (1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);
- (2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);
- (3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or
- (4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means—

- (1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both—
 - (i) An unmanufactured construction material mined or produced in the United States; or
 - (ii) A construction material manufactured in the United States, if—
 - (A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.
 - (B) The construction material is a COTS item; or
- (2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost

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of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components."

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

- (1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR [12.505\(a\)\(2\)](#)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.
- (2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

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- (3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows: NONE
- (4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-
- (i) The cost of domestic construction material would be unreasonable.
 - (A) *For domestic construction material that is not a critical item or does not contain critical components.*
 - (1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;
 - (2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)(1) of this clause.
 - (3) The procedures in paragraph (b)(4)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.
 - (B) *For domestic construction material that is a critical item or contains critical components.*
 - (1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR [25.105](#).
 - (2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)(1) of this clause.
 - (3) The procedures in paragraph (b)(4)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.
 - (ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or
 - (iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.
- (c) Request for determination of inapplicability of the Buy American statute.
- (1)
 - (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-
 - (A) A description of the foreign and domestic construction materials;
 - (B) Unit of measure;
 - (C) Quantity;
 - (D) Price;

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- (E) Time of delivery or availability;
 - (F) Location of the construction project;
 - (G) Name and address of the proposed supplier; and
 - (H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.
- (ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.
 - (iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).
 - (iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.
- (2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.
 - (3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.
- (d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information, and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

Construction Material Description	Unit of Measure	Quantity	Price (dollars) *
<i>Item 1</i>			
Foreign construction material			
Domestic construction material			
<i>Item 2</i>			
Foreign construction material			
Domestic construction material			

** Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued) List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary. Include other applicable supporting information.*

(End of clause)

DOI-AAAP-0165 V2 INDIVIDUAL SURETY - PLEDGE OF ASSETS (DEVIATION TO 52.228-11 JUNE 2023)

The Contractor shall obtain from each person acting as an individual surety on a performance bond or a payment bond—

- (1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) [28.203-1](#); and

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- (2) Standard Form 28, Affidavit of Individual Surety [, **except that the words “being duly sworn, depose and say” on the Standard Form 28 are replaced with the word “affirm” and the Standard Form 28 is not required to be sworn and notarized in block 12**].
- (b) The Contracting Officer may release a portion of the security interest on the individual surety's assets based upon substantial performance of the Contractor's obligations under its performance bond. The security interest in support of a performance bond shall be maintained—
- (1) *Contracts for the construction, alteration, or repair of any public building or public work of the Federal Government exceeding \$150,000 (40 U.S.C. 3131)*. Until completion of any warranty period, or for 1 year following final payment, whichever is later.
- (2) *Contracts subject to alternative payment protection (see FAR [28.102-1\(b\)\(1\)](#))*. For the full contract performance period plus 1 year.
- (3) *Other contracts not subject to the requirements of paragraph (b)(1) of this clause*. Until completion of any warranty period, or for 90-days following final payment, whichever is later.
- (c) A surety's assets pledged in support of a payment bond may be released to a Subcontractor or supplier upon Government receipt of a Federal district court judgment, or a sworn statement by the Subcontractor or supplier that the claim is correct along with a notarized authorization of the release by the surety stating that it approves of such release. The security interest on the individual surety's assets in support of a payment bond shall be maintained—
- (1) *Contracts for the construction, alteration, or repair of any public building or public work of the Federal Government exceeding \$150,000 which require performance and payment bonds (40 U.S.C. 3131)*. For 1-year following final payment, or until resolution of all pending claims filed against the payment bond during the 1-year period following final payment, whichever is later.
- (2) *Contracts subject to alternative payment protection (see FAR [28.102-1\(b\)\(1\)](#))*. For the full contract performance period plus 1 year.
- (3) Other contracts not subject to the requirements of paragraph (c)(1) of this clause. For 90-days following final payment.
- (d) The Contracting Officer may allow the Contractor to substitute an individual surety, for a performance or payment bond, after contract award. The Contractor shall comply with the requirements of paragraph (a) of this clause within the timeframe established by the Contracting Officer.

(End of clause)

DOI-AAAP-0165 PERFORMANCE AND PAYMENT BONDS-CONSTRUCTION (DEVIATION TO 52.228-15 MAY 2023)

- (a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

- (b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful Offeror shall furnish performance and payment bonds to the Contracting Officer as follows:
- (1) Performance bonds ([Standard Form 25](#) [, **except that a seal is not required**]). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.
- (2) Payment Bonds ([Standard Form 25A](#) [, **except that a seal is not required**]). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.
- (3) Additional bond protection. (i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

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(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

- (c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.
- (d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the:

U.S. Department of the Treasury,
Financial Management,
Service Surety Bond Branch,
3700 East West Highway,
Room 6 F01,
Hyattsville, MD 20782.

Or via the internet at [Surety Bonds - List of Certified Companies](#)

- (e) Notice of Subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.236-1 PERFORMANCE OF WORK BY THE CONTRACTOR (APR 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least 15% of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of clause)

52.236-2 DIFFERING SITE CONDITIONS (DEVIATION JAN 2026)

- (a) The Contractor shall promptly, and before the conditions are disturbed, give a written notice to the Contracting Officer of—
 - (1) Latent physical conditions or subsurface conditions at the site which differ materially from those indicated in this contract; or
 - (2) Unknown physical conditions at the site, of an unusual nature, which differ materially from those ordinarily encountered and generally recognized as inherent in work of the character provided for in the contract.
- (b)
 - (1) The Contracting Officer will investigate the site conditions promptly after receiving such a notice.
 - (2) If the conditions materially so differ and cause an increase or decrease in the Contractor's cost of, or the time required for, performing any part of the work under this contract an equitable adjustment must be made under this clause.
- (c) No request for an equitable adjustment to the contract under this clause will be allowed, unless the Contractor has given the written notice required.
- (d) No request for an equitable adjustment to the contract for differing site conditions will be allowed if made after final payment under this contract..

(End of clause)

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52.236-3 SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (DEVIATION JAN 2026)

- (a) The Contractor acknowledges that it has taken steps reasonably necessary to ascertain the nature and location of the work, and that it has investigated and satisfied itself as to the general and local conditions which can affect the work or its cost, including—
- (1) Conditions bearing upon transportation, disposal, handling, and storage of materials;
 - (2) The availability of labor, water, electric power, and roads;
 - (3) Uncertainties of weather, river stages, tides, or similar physical conditions at the site;
 - (4) The conformation and conditions of the ground; and
 - (5) The character of equipment and facilities needed preliminary to and during work performance.
- (b) The Contractor also acknowledges that it has satisfied itself as to the character, quality, and quantity of surface and subsurface materials or obstacles to be encountered insofar as this information is reasonably ascertainable from an inspection of the site, including all exploratory work done by the Government, as well as from the drawings and specifications made a part of this contract. Any failure of the Contractor to take the actions described and acknowledged in this paragraph will not relieve the Contractor from responsibility for estimating properly the difficulty and cost of successfully performing the work, or for proceeding to successfully perform the work without additional expense to the Government.
- (c) The Government assumes no responsibility for any conclusions or interpretations made by the Contractor based on the information made available by the Government. Nor does the Government assume responsibility for any understanding reached or representation made concerning conditions which can affect the work by any of its officers or agents before the execution of this contract, unless that understanding or representation is expressly stated in this contract..

(End of clause)

52.236-5 MATERIAL AND WORKMANSHIP (DEVIATION JAN 2026)

- (a) (1) Equipment, material, and articles incorporated into the work covered by this contract shall be new and of the most suitable grade for the purpose intended, unless otherwise specifically provided in this contract.
(2) References in the specifications to equipment, material, articles, or patented processes by trade name, make, or catalog number, shall be regarded as establishing a standard of quality and shall not be construed as limiting competition.
(3) The Contractor may, at its option, use any equipment, material, article, or process that, in the judgment of the Contracting Officer, is equal to that named in the specifications, unless otherwise specifically provided in this contract.
- (b) The Contractor shall obtain the Contracting Officer's approval of the machinery, mechanical, and other equipment to be incorporated into the work.
- (1) When requesting approval, the Contractor shall furnish to the Contracting Officer the name of the manufacturer, the model number, and other information concerning the performance, capacity, nature, and rating of the machinery and mechanical and other equipment.
 - (2) When required by this contract or by the Contracting Officer, the Contractor shall also obtain the Contracting Officer's approval of the material or articles which the Contractor contemplates incorporating into the work.
 - i. When requesting approval, the Contractor shall provide appropriate and required information concerning the material or articles.
 - ii. When directed to do so, the Contractor shall submit samples for approval at the Contractor's expense, with shipping charges prepaid. Machinery, equipment, material, and articles that do not have the required approval are installed or used at the risk of subsequent rejection.
- (c) Work under this contract shall be performed in a skillful and workmanlike manner. The Contracting Officer may require, in writing, that the Contractor remove from the work any employee the Contracting Officer deems incompetent, careless, or otherwise objectionable.

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(End of clause)

52.236-6 SUPERINTENDENCE BY THE CONTRACTOR (DEVIATION JAN 2026)

During performance of this contract and until the work is completed and accepted, the Contractor shall directly superintend the work or assign and have on site a competent superintendent who is satisfactory to the Contracting Officer and has authority to act for the Contractor.

(End of clause)

52.236-7 PERMITS AND RESPONSIBILITIES (DEVIATION JAN 2026)

(a) The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits, and for complying with any Federal, State, and municipal laws, codes, and regulations applicable to the performance of the work.

(b) The Contractor shall be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence.

(c) The Contractor shall be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

(End of clause)

52.236-8 OTHER CONTRACTS (DEVIATION JAN 2026)

(a) The Government may award other contracts for work at or near the site of the work under this contract. The Contractor shall cooperate and coordinate with—

(1) Other contractors; and

(2) Government employees.

(b) The Contractor shall adapt scheduling and performance of the work under this contract to accommodate the performance of other contractors. The Contractor's scheduling and performance shall not delay or interfere with the performance of work by other contractors or Government employees.

(End of clause)

52.236-9 PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS (DEVIATION JAN 2026)

(a) The Contractor shall preserve and protect structures, equipment, and vegetation (such as trees, shrubs, and grass) on or adjacent to the work site, which are not to be removed, and which do not unreasonably interfere with the work required under this contract. The Contractor shall only remove trees when specifically authorized to do so. If any limbs or branches of trees are broken during contract performance, the Contractor shall trim those limbs or branches with a clean cut and paint the cut with a tree-pruning compound as directed by the Contracting Officer.

(b) The Contractor shall protect from damage and, in the event of damage resulting from non-compliance with this contract or failure to exercise reasonable care in performing the work, shall promptly repair existing improvements and utilities at or near the work site, on adjacent property of a third party, and on or near transportation paths and routes. The Contractor shall repair any damage, including those that are the property of a third party.

(c) If the Contractor fails or refuses to repair the damage promptly, the Contracting Officer may have the necessary work performed and charge the cost to the Contractor..

(End of clause)

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52.236-10 OPERATIONS AND STORAGE AREAS (DEVIATION JAN 2026)

- (a) The Contractor shall confine all activities and operations on site to areas authorized or approved by the Contracting Officer. The Contractor shall hold and save the Government, its officers and agents, free and harmless from liability of any nature occasioned by the Contractor's performance.
- (b) (1) Temporary buildings (e.g., storage sheds, shops, offices) and utilities—
 - i. May be erected by the Contractor only with the approval of the Contracting Officer; and
 - ii. Shall only be built with labor and materials furnished by the Contractor without additional expense to the Government.
- (2) The temporary buildings and utilities are the property of the Contractor and shall be removed by the Contractor at its expense upon completion of the work.
- (3) The temporary buildings and utilities may be abandoned and need not be removed, with written consent of the Contracting Officer.
- (c) The Contractor shall, as prescribed by the Contracting Officer, use only established roadways, or use temporary roadways constructed by the Contractor when and as authorized by the Contracting Officer. When materials are transported in prosecuting the work, vehicles shall not be loaded beyond the loading capacity recommended by the manufacturer of the vehicle or prescribed by any Federal, State, or local law or regulation..

(End of clause)

52.236-11 USE AND POSSESSION PRIOR TO COMPLETION (DEVIATION JAN 2026)

- (a) The Government has the right to take possession of or use any completed or partially completed part of the work.
 - (1) Before taking possession of or using any work, the Contracting Officer will furnish the Contractor a list of items of work remaining to be performed or corrected on those portions of the work that the Government intends to take possession of or use.
 - (2) Failure of the Contracting Officer to list any item of work shall not relieve the Contractor of responsibility for complying with the terms of the contract.
 - (3) The Government's possession or use shall not be deemed an acceptance of any work under the contract.
- (b)
 - (1) While the Government has such possession or use, the Contractor is relieved of the responsibility for the loss of or damage to the work resulting from the Government's possession or use, notwithstanding the terms of the clause in this contract entitled "Permits and Responsibilities".
 - (2) If prior possession or use by the Government delays the progress of the work or causes additional expense to the Contractor, an equitable adjustment shall be made in the contract price or the time of completion, and the contract shall be modified in writing accordingly.

(End of clause)

52.236-12 CLEANING UP (DEVIATION JAN 2026)

- (a) The Contractor shall keep the work area, including storage areas, in a clean, neat, orderly condition, and free from accumulations of waste materials.
- (b) Before completing the work, the Contractor shall remove from the site any rubbish, tools, scaffolding, equipment, and materials that are not the property of the Government.

(End of clause)

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52.236-13 ACCIDENT PREVENTION (DEVIATION JAN 2026)

- (a) The Contractor shall provide and maintain work environments and procedures which will—
 - (1) Safeguard the public and Government personnel, property, materials, supplies, and equipment exposed to Contractor operations and activities;
 - (2) Avoid interruptions of Government operations and delays in project completion dates; and
 - (3) Control costs in the performance of this contract.
- (b) In addition, for contracts for construction or dismantling, demolition, or removal of improvements, the Contractor shall—
 - (1) Provide appropriate safety barricades, signs, and signal lights;
 - (2) Comply with the standards issued by the Secretary of Labor at 29 CFR part 1926 and 29 CFR part 1910 ; and
 - (3) Ensure that any additional measures the Contracting Officer determines to be reasonably necessary for the purposes are taken.
- (c) If this contract is for construction or dismantling, demolition or removal of improvements with any Department of Defense agency or component, the Contractor shall comply with all pertinent provisions of the latest version of U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, in effect on the date of the solicitation.
- (d)
 - (1) If the Contracting Officer becomes aware of any noncompliance with these requirements or any condition that poses a serious or imminent danger to the health or safety of the public or Government personnel, the Contracting Officer will notify the Contractor orally, with written confirmation, and request immediate initiation of corrective action.
 - (2) This notice, when delivered to the Contractor or the Contractor's representative at the work site, shall be deemed sufficient notice of the noncompliance and that corrective action is required.
 - (3) After receiving the notice, the Contractor shall immediately take corrective action.
 - (4) If the Contractor fails or refuses to promptly take corrective action, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken.
 - (5) The Contractor shall not be entitled to any equitable adjustment of the contract price or extension of the performance schedule on any stop-work order issued under this clause..
- (e) The Contractor shall insert the substance of this clause, including this paragraph (e), in subcontracts.

(End of clause)

52.236-14 AVAILABILITY AND USE OF UTILITY SERVICES (DEVIATION JAN 2026)

- (a) The Government will make all reasonably required water and electric utilities available to the Contractor from existing outlets and supplies, as specified in the contract.
- (b) Unless otherwise provided in the contract, the Contractor shall pay for all utility costs.
- (c) The Contractor, at its expense and in a workmanlike manner, shall install and maintain all necessary temporary connections, distribution lines, and all meters required to measure the amount of each utility used for the purpose of determining charges.
- (d) Before final acceptance by the Government, the Contractor shall remove the temporary connections, distribution lines, meters, and associated paraphernalia.

(End of clause)

52.236-17 LAYOUT OF WORK. (DEVIATION JAN 2026)

- (a) The Contractor shall lay out its work from Government-established base lines and benchmarks provided on the drawings.
- (b) The Contractor shall be responsible for all measurements in connection with the layout.

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- (c) The Contractor shall furnish, at its own expense, all stakes, templates, platforms, equipment, tools, materials, and labor required for the layout.
- (d) The Contractor shall be responsible for executing the work to the lines and grades that may be established or indicated by the Contracting Officer.
- (e)
 - (1) The Contractor shall be responsible for maintaining and preserving all stakes and other marks established by the Contracting Officer until authorized to remove them.
 - (2) If such marks are destroyed by the Contractor, the Contracting Officer may replace them and deduct the expense of the replacement from any amounts due or to become due to the Contractor.

(End of clause)

52.236-21 SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (DEVIATION JAN 2026)

- (a) The Contractor shall keep at the site a copy of the drawings and specifications and shall at all times give the Contracting Officer access thereto.
- (b) Anything mentioned in the specifications and not shown on the drawings or shown on the drawings and not mentioned in the specifications, shall be of like effect as if shown or mentioned in both.
 - (1) In case of difference between drawings and specifications, the specifications shall govern.
 - (2) In case of discrepancy in the figures, in the drawings, or in the specifications, the matter shall be promptly submitted to the Contracting Officer, who shall promptly make a determination in writing.
 - (3) Any adjustment by the Contractor without such a determination shall be at its own risk and expense.
- (c) The Contracting Officer will furnish from time to time such detailed drawings and other information as considered necessary, unless otherwise provided.
- (d)
 - (1) Words, such as, “directed”, “required”, “ordered”, “designated”, “prescribed”, or words of like import when used, in the specifications or on the drawings are intended to mean the “direction”, “requirement”, “order”, “designation”, or “prescription”, of the Contracting Officer.
 - (2) Words, such as, “approved”, “acceptable”, “satisfactory”, or words of like import shall mean “approved by”, or “acceptable to”, or “satisfactory to” the Contracting Officer, unless otherwise expressly stated.
- (e) Where “as shown”, “as indicated”, “as detailed”, or words of similar import are used, it shall be understood that the reference is made to the drawings accompanying this contract unless stated otherwise. The word “provided” as used herein shall be understood to mean “provide complete in place”, that is “furnished and installed”.
- (f) Shop drawings means drawings, submitted to the Government by the Contractor, subcontractor, or any lower tier subcontractor pursuant to a construction contract, showing in detail (1) the proposed fabrication and assembly of structural elements and (2) the installation (i.e., form, fit, and attachment details) of materials or equipment. It includes drawings, diagrams, layouts, schematics, descriptive literature, illustrations, schedules, performance and test data, and similar materials furnished by the contractor to explain in detail specific portions of the work required by the contract. The Government may duplicate, use, and disclose in any manner and for any purpose shop drawings delivered under this contract.
- (g)
 - (1) If this contract requires shop drawings, the Contractor shall coordinate all such drawings, and review them for accuracy, completeness, and compliance with contract requirements and shall indicate its approval thereon as evidence of such coordination and review.
 - (2) Shop drawings submitted to the Contracting Officer without evidence of the Contractor's approval may be returned for resubmission.

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(h) The Contracting Officer will indicate an approval or disapproval of the shop drawings and if not approved as submitted shall indicate the Government's reasons therefor.

(1) Any work done before such approval shall be at the Contractor's risk.

(2) Approval by the Contracting Officer shall not relieve the Contractor from responsibility for any errors or omissions in such drawings, nor from responsibility for complying with the requirements of this contract, except with respect to variations described and approved in accordance with paragraph (i) of this clause.

(i) (1) If shop drawings show variations from the contract requirements, the Contractor shall describe such variations in writing, separate from the drawings, at the time of submission.

(2) If the Contracting Officer approves any such variation, the Contracting Officer will issue an appropriate contract modification, except that, if the variation is minor or does not involve a change in price or in time of performance, a modification need not be issued.

(End of clause)

52.236-26 PRECONSTRUCTION CONFERENCE (FEB 1995) (FEB 1998)

If the Contracting Officer decides to conduct a preconstruction conference, the successful Offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by Subcontractors, and information regarding the items to be discussed.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/content/regulations>. For clauses incorporated by reference with "DEVIATION" use the FAR Overhaul section of the website.

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

1452.203-70 RESTRICTIONS ON ENDORSEMENTS (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

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1452.215-70 EXAMINATION OF RECORDS BY THE DEPARTMENT OF THE INTERIOR (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215–2(d)), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

1452.228-70 LIABILITY INSURANCE. (JUL 1996)

- (a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY

\$100,000 minimum coverage

GENERAL LIABILITY

\$500,000 per occurrence

AUTOMOBILE LIABILITY

\$200,000 each person

\$500,000 each occurrence

\$ 20,000 property damage

- (b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30-days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The Contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

*These amounts to be set by the Contracting Officer

(End of clause)

1452.236-70 PROHIBITION AGAINST USE OF LEAD-BASED PAINT (JUL 1996)

Paint containing more than .06 percent by weight of lead in paint, or the equivalent measure of lead in the dried film of paint already applied, shall not be used in the construction or rehabilitation of residential structures under this contract or any resulting subcontracts.

(End of clause)

End of Section I

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PART III – LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

SECTION J – LIST OF ATTACHMENTS

ATTACHMENT NUMBER	TITLE	DATE	NO. OF PAGES
1	Specifications Attached in SAM.GOV	12/19/25	1034
2	Drawings Attached in SAM.GOV	12/19/25	153
3	Structural Design Calculations Attached in SAM.GOV	12/19/25	194
4	Wage Determination NY20260003	1/30/26	26
5	Price Schedule B Worksheet for Pricing	NA	1
6	Subcontracting Percentage Worksheet	NA	1
7	Project Experience Questionnaire	NA	1
8	Past Performance Questionnaire	NA	4
9	Profit Calculator	NA	1
10	Universal Design & Accessibility scoping	12/19/26	7

End of Section J

"General Decision Number: NY20260003 01/30/2026

Superseded General Decision Number: NY20250003

State: New York

Construction Types: Building, Heavy, Highway and Residential

Counties: Bronx, Kings, New York, Queens and Richmond
Counties in New York.

BUILDING & RESIDENTIAL CONSTRUCTION PROJECTS (includes single
family homes and apartments up to and including 4 stories),
HEAVY AND HIGHWAY CONSTRUCTION PROJECTS

Modification Number	Publication Date
0	01/02/2026
1	01/30/2026

ASBE0012-001 06/01/2025

	Rates	Fringes
Asbestos Workers/Insulator		
Includes application of all insulating materials, protective coverings, coatings and finishes to all types of mechanical systems.....	\$ 71.76	36.81
HAZARDOUS MATERIAL HANDLER.....	\$ 47.75	13.70

BOIL0005-001 01/01/2025

	Rates	Fringes
BOILERMAKER.....	\$ 68.88	49.83+a

FOOTNOTE:

a. PAID HOLIDAYS: New Year's Day, Thanksgiving Day, Memorial
Day, Independence Day, Labor Day and Good Friday, Friday
after Thanksgiving, Christmas Eve Day and New Year's Eve

BRNY0001-001 07/01/2024

	Rates	Fringes
BRICKLAYER.....	\$ 67.39	35.90
MASON - STONE.....	\$ 69.91	44.02

BRNY0001-002 07/01/2024

	Rates	Fringes
Pointer, cleaner and caulker.....	\$ 63.69	32.42

BRNY0004-001 07/01/2024

	Rates	Fringes
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MARBLE MASON.....	\$ 63.92	40.20

BRNY0007-001 12/02/2024		
	Rates	Fringes
TERRAZZO FINISHER.....	\$ 49.59	34.25
TERRAZZO WORKER/SETTER.....	\$ 64.62	37.63

BRNY0007-002 12/02/2024		
	Rates	Fringes
TILE FINISHER.....	\$ 49.59	34.25

BRNY0020-001 07/01/2024		
	Rates	Fringes
MARBLE FINISHER.....	\$ 49.99	37.54

BRNY0024-001 06/03/2024		
	Rates	Fringes
BRICKLAYER		
MARBLE POLISHERS.....	\$ 52.32	36.25

BRNY0052-001 06/03/2024		
	Rates	Fringes
Tile Layer.....	\$ 64.40	37.13

CARP0020-001 07/01/2025		
Richmond County		
	Rates	Fringes
CARPENTER (BUILDING & RESIDENTIAL)		
Carpenters.....	\$ 59.05	48.08

CARP0020-002 07/01/2025		
Richmond County		
	Rates	Fringes
CARPENTER (HEAVY & HIGHWAY).....	\$ 61.59	55.84

CARP0045-001 07/01/2025		
Queens County		
	Rates	Fringes
CARPENTER (BUILDING & RESIDENTIAL)		
Carpenters.....	\$ 59.05	48.08

CARP0045-002 07/01/2025		

Queens County

	Rates	Fringes
CARPENTER (HEAVY & HIGHWAY).....	\$ 61.59	55.84

CARP0157-001 07/01/2025		

Bronx and New York Counties

	Rates	Fringes
CARPENTER (BUILDING & RESIDENTIAL) Carpenters.....	\$ 59.05	48.08

CARP0157-002 07/01/2025		

Bronx and New York Counties

	Rates	Fringes
CARPENTER (HEAVY & HIGHWAY).....	\$ 61.59	55.84

CARP0740-001 07/01/2025		

	Rates	Fringes
MILLWRIGHT.....	\$ 60.83	58.03

CARP0926-001 07/01/2025		

Kings County

	Rates	Fringes
CARPENTER (BUILDING & RESIDENTIAL) Carpenters.....	\$ 59.05	48.08

CARP0926-002 07/01/2025		

Kings County

	Rates	Fringes
CARPENTER (HEAVY & HIGHWAY).....	\$ 61.59	55.84

CARP1556-006 07/01/2024		

	Rates	Fringes
Dock Builder & Piledrivermen.....	\$ 60.59	55.84

CARP1556-007 07/01/2024		

	Rates	Fringes
Diver Tender.....	\$ 55.00	55.84
Diver.....	\$ 75.46	55.84

CARP1556-011 07/01/2024		

	Rates	Fringes
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Carpenters:

TIMBERMEN.....	\$ 55.59	55.41
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CARP2287-004 07/01/2025

	Rates	Fringes
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Carpenters:

Soft Floor Layers.....	\$ 59.05	48.08
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ELEC0003-001 04/10/2024

	Rates	Fringes
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ELECTRICIAN

Electricians.....	\$ 62.00	74.695%+19.50
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Jobbing, and maintenance and repair work.....	\$ 32.00	53.615%+10.00
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PAID HOLIDAYS:

a. New Years Day, Martin Luther King, Jr.'s Birthday,
Washington's Birthday, Memorial Day, Independence Day,
Labor Day, Columbus Day, Election Day, Thanksgiving Day,
the day after Thanksgiving Day, and Christmas Day

ELEC1049-001 03/30/2025

QUEENS COUNTY

	Rates	Fringes
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Line Construction (Substation
and Switching structures pipe
type cable installation and
maintenance jobs or projects;
Railroad electrical
distribution/transmission
systems maintenance (when
work is not performed by
railroad employees) Overhead
and Underground
transmission/distribution
line work. Fiber optic,
telephone cable and equipment)

Groundman.....	\$ 42.34	30.05
Heavy Equipment Operator....	\$ 56.46	34.63
Lineman and Cable Splicer...	\$ 70.57	39.19
Tree Trimmer.....	\$ 30.09	14.12

ELEV0001-002 03/17/2022

	Rates	Fringes
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ELEVATOR MECHANIC

Elevator Constructor.....	\$ 75.14	47.446+a+b
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Modernization and Repair....	\$ 59.09	45.564+a+b
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FOOTNOTE:

a. PAID HOLIDAYS: New Year's Day, Good Friday, President's
Day, Memorial Day, Independence Day, Labor Day, Columbus
Day, Veteran's Day, Thanksgiving Day, Friday after
Thanksgiving, and Christmas Day.

b. PAID VACATION: An employee who has worked less than 5 years shall receive vacation pay credit on the basis of 4% of his hourly rate for all hours worked; an employee who has worked 5 to 15 years shall receive vacation pay credit on the basis of 6% of his hourly rate for all hours worked; an employee who has worked 15 or more years shall receive vacation pay credit on the basis of 8% of his hourly rate for all hours worked.

 ENGI0014-001 07/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATOR (HEAVY & HIGHWAY)		
GROUP 1.....	\$ 117.60	38.95
GROUP 2.....	\$ 97.06	38.95
GROUP 3.....	\$ 100.18	38.95
GROUP 4.....	\$ 97.75	38.95
GROUP 5.....	\$ 95.83	38.95
GROUP 6.....	\$ 92.01	38.95
GROUP 7.....	\$ 93.74	38.95
GROUP 8.....	\$ 91.04	38.95
GROUP 9.....	\$ 88.72	38.95
GROUP 10.....	\$ 85.21	38.95
GROUP 11.....	\$ 79.62	38.95
GROUP 12.....	\$ 81.38	38.95
GROUP 13.....	\$ 81.97	38.95
GROUP 14.....	\$ 61.87	38.95
GROUP 15.....	\$ 57.52	38.95
POWER EQUIPMENT OPERATOR (PAVEMENT-HEAVY & HIGHWAY)		
Asphalt Plants.....	\$ 75.01	38.95
Asphalt roller.....	\$ 88.72	38.95
Asphalt spreader.....	\$ 91.04	38.95
POWER EQUIPMENT OPERATOR (STEEL ERECTION)		
Compressors, Welding Machines.....	\$ 56.34	36.95
Cranes, Hydraulic Cranes, 2 drum derricks, Forklifts, Boom Trucks.....	\$ 96.26	36.95
Three drum derricks.....	\$ 100.14	36.95
POWER EQUIPMENT OPERATOR (UTILITY)		
Horizontal Boring Rig.....	\$ 86.61	38.95
Off shift compressors.....	\$ 71.98	38.95
Utility Compressors.....	\$ 57.14	38.95

POWER EQUIPMENT OPERATOR CLASSIFICATIONS

- GROUP 1: Tower crane
- GROUP 2: Rubber Tire Backhoes over 37,000 lbs, Track Backhoes, power shovel, Hydraulic clam shells, moles and machines of a similar type
- GROUP 3: Mine hoists and crane, etc. used as mine hoists
- GROUP 4: Gradalls, keystones, cranes (with digging buckets), bridge cranes, trenching machines, vermeer cutter and machines of a similar nature

GROUP 5: Piledrivers, derrick boats, tunnel shovels

GROUP 6: All drills, and machines of a similar nature

GROUP 7: Back filling machines, cranes, mucking machines, dual drum pavers

GROUP 8: Mixers (concrete w/loading attachments), concrete pavers, cableways, land derricks, power house (low pressure units), concrete pumps

GROUP 9: Concrete plants, well drilling machines, stone crushers double drum hoist, power house (other than above)

GROUP 10: Concrete mixers

GROUP 11: Elevators

GROUP 12: Concrete breaking machine, Hoists (single drum), load masters, locomotive and dinkies over 10 tons

GROUP 13: Vibratory console

GROUP 14: Compressors (portable 3 or more in battery), tugger machine (caissons), well point pumps, chum drill

GROUP 15: Boilers, (high pressure, compressors (portable, single, or 2 in battery, not over 100' apart), pumps (river cofferdam and welding machines (except where arc is operated by members of local 15) push button machines, all engines irrespective of power (power pac) used to drive auxilliary equipment, air, hydraulic etc.

PREMIUMS ON CRANES (Crawler or Truck):

100' to 149' boom - add .50
150' to 249' boom - add .75
250' to 349' boom - add 1.00
350' to 450' boom - add 1.50

Premiums for Cranes on Steel Erection:

100' to 149' boom - add 1.75
150' to 249' boom - add 2.00
250' to 349' boom - add 2.25
350' to 450' boom - add 2.75
Tower crane - add 2.00

FOOTNOTE:

a. Paid Holidays: New Year's Day; Lincoln's Birthday; Washington's Birthday; Memorial Day; Independence Day; Labor Day; Veterans Day; Columbus Day; Election Day; Thanksgiving Day; and Christmas Day; provided the employee works one day the payroll week in which the holiday occurs.

ENGI0014-002 07/01/2025

	Rates	Fringes
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Power Equipment Operator

BUILDING & RESIDENTIAL

GROUP 1.....	\$ 92.32	38.95
GROUP 2.....	\$ 97.79	38.95
GROUP 3.....	\$ 79.70	38.95
GROUP 4.....	\$ 72.46	38.95
GROUP 5.....	\$ 54.12	38.95

POWER EQUIPMENT OPERATORS CLASSIFICATIONS

GROUP 1: Double drum

GROUP 2: Stone derrick, cranes, hydraulic cranes, boom trucks

GROUP 3: 4 pole Hoist, Single Drum Hoists

GROUP 4: Fork lift, house cars, plaster (platform machine), plaster bucket, concrete pump and all other equipment used for hoisting material

GROUP 5: Compressors, welding machines (cutting concrete work), paint spraying, sand blasting, pumps (with the exclusion of concrete pumps), house car (settlement basis only), all engines irrespective of power (power pac) used to drive auxiliary equipment, air, hydraulic, etc., boilers

Premiums for Cranes:

100'-149' boom - add 1.75
150'-249' boom - add 2.00
250'-349' boom - add 2.25
350'-450' boom - add 2.75
Tower cranes add 2.00

FOOTNOTE:

a. PAID HOLIDAYS: New Year's Day, Lincoln's Birthday, Memorial Day, Independence Day, Labor Day, Veteran's Day, Columbus Day, Election Day, Thanksgiving Day, and Christmas Day, provided the employee works one day in the payroll week in which the holiday occurs

ENGI0015-001 07/01/2021

	Rates	Fringes
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POWER EQUIPMENT OPERATOR

HEAVY AND HIGHWAY

GROUP 1.....	\$ 74.65	38.00
GROUP 2.....	\$ 72.40	38.00
GROUP 3.....	\$ 68.62	38.00
GROUP 4.....	\$ 64.82	38.00
GROUP 5.....	\$ 44.45	38.00

POWER EQUIPMENT OPERATORS CLASSIFICATIONS

GROUP 1: Cherrypickers 20 tons and over and loaders (rubber-tired and/or tractor type with a manufacturer's rated capacity of six cubic yards and over

GROUP 2: Rubber Tire Backhoes up to and including 37,000 lbs, Basin Machines, Groover, Mechanical Sweepers, Bobcat, Boom Truck, Barrier Transport (Barrier Mover) and machines of a similar nature, Boat Captains, Boat Operators, operation of Churn Drills and machines of a similar nature, Stetco Silent Hoist and machines of a similar nature, Vac-alls, Meyers Machines, John Beam and machines of a similar nature, Ross Carriers and Travel Lifts and machines of a similar nature, Bulldozers, Scrapers, and Turn-a Pulls, Tugger Hoist (used exclusively for handling excavated material), Tractors with attachments, Hyster and Roustabout Cranes, Cherrypickers, Austin Western, Grove and machines

of a similar nature, Scoopmobiles, Monorails, Conveyors, Trenchers, Loaders- Rubber-tired and Tractor, Barber Greene, Eimco Loaders and Eimco Backhoes, Mighty Midget and similar breakers and tampers, Curb and Gutter Pavers and Motor Patrol, Motor Graders and all machines of a similar nature, Locomotives ten (10) tons or under, Mini-Max, Break-Tech and machines of a similar nature, Milling Machines, robotic and demolition machines and machines of a similar nature including Bobcat, Pile Rig Rubber-tired Excavator (37,000 lbs. and under), 2 man auger
GROUP 3: Minor Equipment such as Tractors, Post Hole Diggers and Drivers, Ditch Witch (Walk Behind), Road Finishing Machines, Rollers (five (5) tons and under), Tugger Hoists, Dual Purpose Trucks, Fork Lifts and Dempsey Dumpsters

GROUP 4: Oilers for the following equipment: (all gasoline, electric, diesel, or air operated) gradalls and concrete pumps or similarly equipment manned by two-men

GROUP 5: Oilers for the following equipment: (all gasoline, electric, diesel, or air operated) shovels, cranes (draglines), backhoes, pavers, trenching machines, gunite machines, compressors (3 or more in battery)

Premiums for Cranes:

100'-149' boom - add 1.75
150'-249' boom - add 2.00
250'-349' boom - add 2.25
350'-450' boom - add 2.75
Tower cranes add 2.00

FOOTNOTE:

a. PAID HOLIDAYS: New Year's Day, Lincoln's Birthday, Memorial Day, Independence Day, Labor Day, Veteran's Day, Columbus Day, Election Day, Thanksgiving Day, and Christmas Day, provided the employee works one day in the payroll week in which the holiday occurs

ENGI0015-002 07/01/2016

	Rates	Fringes
POWER EQUIPMENT OPERATOR		
BUILDING		
GROUP 1.....	\$ 65.94	32.95
GROUP 2.....	\$ 63.98	32.95
GROUP 3.....	\$ 57.42	32.95

POWER EQUIPMENT OPERATORS CLASSIFICATIONS

GROUP 1: Oiler

GROUP 2: Oilers on Crawler Cranes, Backhoes, Trenching machines, Gunite machines, Compressors (3 or more in Battery)

GROUP 3: Gradalls: Concrete Pumps, Power Houses - All equipment in same is manned by two (2) men only, Driving Truck Cranes

FOOTNOTE:

a. PAID HOLIDAYS: New Year's Day, Lincoln's Birthday, Memorial Day, Independence Day, Labor Day, Veteran's Day, Columbus Day, Election Day, Thanksgiving Day, and Christmas Day, provided the employee works one day in the payroll week in which the holiday occurs

IRON0040-002 07/01/2025

BRONX, NEW YORK, RICHMOND

	Rates	Fringes
IRONWORKER, STRUCTURAL.....	\$ 58.95	92.02

IRON0046-003 07/01/2025

	Rates	Fringes
IRONWORKER METALLIC LATHERS AND REINFORCING IRONWORKERS.....	\$ 57.00	32.96

IRON0197-001 07/01/2024

	Rates	Fringes
IRONWORKER STONE DERRICKMAN.....	\$ 60.40	60.14

IRON0361-002 07/01/2025

KINGS, QUEENS

	Rates	Fringes
Ironworkers: (STRUCTURAL).....	\$ 58.95	92.02

IRON0580-001 07/01/2025

	Rates	Fringes
IRONWORKER, ORNAMENTAL.....	\$ 48.15	67.62

LAB00006-001 07/01/2022

	Rates	Fringes
LABORER (Cement and Concrete Workers).....	\$ 49.28	27.05

LAB00078-001 01/06/2025

	Rates	Fringes
LABORERS BUILDING CONSTRUCTION ASBESTOS (Removal, Abatement, Encapsulation or Decontamination of asbestos); LEAD; & HAZARDOUS WASTE LABORERS (Hazardous Waste, Hazardous Materials, Biochemical and Mold Remediation, HVAC, Duct Cleaning, Re-spray Fireproofing, etc).....	\$ 41.15	20.90

LAB00079-001 07/01/2025

	Rates	Fringes
LABORER (Building Construction)		
Demolition Laborers (Interior)		
Tier A.....	\$ 40.22	25.17
Tier B.....	\$ 29.29	20.29
Mason Tender/General Laborer.....	\$ 44.70	29.55

CLASSIFICATIONS

TIER A: Responsible for the removal of all interior petitions and structural petitions that can consist of sheet rock, block or masonry. Also, all structural slab openings for ducts, mechanical, shafts, elevators, slab openings and exterior walls where the building is not being completely demolished.

TIER B: Responsible for shoveling of debris into containers, pushing containers from the inside to the outside of the building.

LAB00147-001 07/01/2022

	Rates	Fringes
LABORERS (FREE AIR & TUNNEL).....	\$ 64.08	54.00

Maintenance Men, Inside Muck Lock Tenders, Pump Men, Electricians, Cement Finishers, Caulkers, Hydraulic Men, Shield Men, Monorail Operators, Motor Men, Conveyor Men, Powder Carriers, Pan Men, Riggers, Chuck Tenders, Track Men Painters, Nippers, Brakemen, Cable Men, Hose Men, Grout Men, Gravel Men, Form Workers, Concrete Workers, Tunnel Laborers, Mole Nipper (one (1) Mole Sipper per Working Shaft per Shift for up to and including Two (2) Moles

LAB00731-001 07/01/2023

	Rates	Fringes
LABORER		
Building, Heavy and Residential Construction		
LABORER: (Asbestos, Lead, Hazardous Waste Removal (including soil)/CEMENT/CONCRETE.....	\$ 44.50	52.08
UTILITY LABORER.....	\$ 44.35	52.08

Paid Holidays: Labor Day and Thanksgiving Day

LAB00731-002 07/01/2023

	Rates	Fringes
Laborers:		
Heavy		
Blasters (hydraulic trac drill).....	\$ 51.85	52.08
Blasters.....	\$ 57.71	52.08

Hydraulic Trac Drill.....	\$ 51.85	52.08
Jackhammers, Chippers, Spaders, Concrete Breakers, All Other Pneumatic Tools, Walk Behind Self-Propelled Hydraulic Asphalt and Concrete Breaker.....	\$ 44.50	52.08
Powder Carriers.....	\$ 44.50	52.08

LAB01010-001 07/01/2025

	Rates	Fringes
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Laborers:

HIGHWAY CONSTRUCTION		
Fence Installer & Repairer..	\$ 46.33	54.04
FORMSETTERS.....	\$ 50.80	54.04
LABORERS.....	\$ 46.33	54.04
Landscape Planting & Maintenance.....	\$ 46.33	54.04
Maintenance Safety Surface..	\$ 46.33	54.04
Slurry/Sealcoater/Play Equipment Installer.....	\$ 46.33	54.04
Small Equipment Operator (Not Operating Engineer)...	\$ 46.33	54.04
Small Power Tools Operator..	\$ 46.33	54.04

FOOTNOTES:

a. PAID HOLIDAYS: Memorial Day, Fourth of July, Labor Day, Columbus Day, Election Day and Thanksgiving Day, provided the employee has worked one (1) day in the calendar week in which the said holiday occurs.

LAB01010-002 07/01/2025

	Rates	Fringes
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Laborers-Asphalt Construction:

Micro Paver.....	\$ 50.80	54.05
Raker.....	\$ 50.20	54.05
Screedperson.....	\$ 50.80	54.05
Shoveler (Production Paving Only).....	\$ 46.33	54.05
Small Equipment Operator (Asphalt).....	\$ 46.33	54.05

PAIN0009-001 05/01/2025

	Rates	Fringes
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GLAZIER.....	\$ 49.20	57.20
PAINTER		
Painters, Drywall Finishers, Lead Abatement Worker.....	\$ 44.75	44.11
Spray, Scaffold and Sandblasting.....	\$ 47.75	44.11

PAIN0806-001 10/01/2024

	Rates	Fringes
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Painters:

Structural Steel and Bridge.	\$ 56.25	55.14
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PAIN1974-001 06/28/2025

Rates	Fringes
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Painters:

Drywall Tapers/Pointers.....	\$ 48.47	35.91
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PLAS0262-001 08/01/2025

Rates	Fringes
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PLASTERER.....	\$ 48.51	32.78
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PLAS0262-002 08/01/2025

KINGS AND QUEENS COUNTIES

Rates	Fringes
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PLASTERER.....	\$ 48.51	32.78
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PLAS0780-001 07/01/2025

Rates	Fringes
-------	---------

CEMENT MASON/CONCRETE FINISHER...	\$ 59.87	41.81
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PLUM0001-001 07/01/2025

Rates	Fringes
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PLUMBER

MECHANICAL EQUIPMENT AND
SERVICE

Any repair and/or
replacement of the
present plumbing system
that does not change the

existing roughing.....	\$ 48.90	22.26
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PLUMBERS:.....	\$ 73.00	32.81
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* PLUM0638-001 01/01/2026

Rates	Fringes
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PLUMBER

SERVICE FITTERS.....	\$ 47.85	23.96
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SPRINKLER FITTERS,

STEAMFITTERS.....	\$ 70.36	54.24
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Service Fitter work shall consist of all repair, service and maintenance work on domestic, commercial and industrial refrigeration, air conditioning and air cooling, stoker and oil burner apparatus and heating apparatus etc., including but not exclusively the charging, evacuation, leak testing and assembling for all machines for domestic, commercial and industrial refrigeration, air conditioning and heating apparatus. Also, work shall include adjusting, including capacity adjustments, checking and repairing or replacement of all controls and start up of all machines and repairing all defects that may develop on any system for domestic, commercial and industrial refrigeration and all air

conditioning, air cooling, stoker and oil burner apparatus and heating apparatus regardless of size or type.

ROOF0008-003 05/01/2025

	Rates	Fringes
ROOFER.....	\$ 50.25	32.62

SHEE0028-002 11/02/2023

	Rates	Fringes
SHEET METAL WORKER		
BUILDING CONSTRUCTION.....	\$ 53.60	60.74
RESIDENTIAL CONSTRUCTION....	\$ 35.79	25.37

TEAM0282-001 07/01/2025

	Rates	Fringes
TRUCK DRIVER		
Asphalt.....	\$ 46.115	59.6525+a
Euclids & Turnapulls.....	\$ 49.38	57.6525+a
High Rise.....	\$ 65.43	53.15+a

FOOTNOTES:

PAID HOLIDAYS: New Year's Day, Presidents' Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Election Day, Veterans' Day (Armistice Day), Thanksgiving Day, Day after Thanksgiving and Christmas Day. Employees working two (2) days in the calendar week in which a holiday falls are to be paid for such holiday, provided that they shape each remaining workday during such calendar week.

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between

January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the

collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as

conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"



United States Department of the Interior

NATIONAL PARK SERVICE
DENVER SERVICE CENTER

Subcontracting Percentage Worksheet

FAR Clause 52.219-14 Limitations of Subcontracting

Prime Contractor: _____ Source: _____

Subcontractor: _____ Source: _____

	PRIME CONTRACTOR	SUBCONTRACTOR
DIRECT LABOR	\$	
FRINGE BENEFITS*	\$	
SUBTOTAL	(A)\$	(B)\$
LABOR G&A** @ %	\$	\$
TOTAL LABOR COSTS	(C)\$	(D)\$

To calculate the subcontracting percentage, first add **DIRECT LABOR** and **FRINGE BENEFITS** and enter these figures for the prime contractor in space **(A)** and for the subcontractor (if available?)* in space **(B)**

Next, calculate the LABOR G&A rate by the subtotal figure in space **(A)**.

Calculate the subcontractor's **LABOR G&A** by multiplying the subcontractor's **G&A** rate by the subcontractor's **SUBTOTAL** figure in **(B)**.

Add the **LABOR G&A** to the **SUBTOTAL** and record that figure in the space for **TOTAL LABOR COSTS** at **(C)** and **(D)** respectively.

Next, using the formula below, calculate the subcontracting labor percentage.

(D)

(C) + (D)

SUBCONTRACTING LABOR COST PERCENTAGE = _____%

* The firm must demonstrate that their labor overhead is allowable in accordance with FAR 31.205-6(m). Failure to do so will cause the entire overhead to be eliminated from the calculations.

** G&A denotes General and Administrative Costs.

*** You need to compare as like figures as possible. Therefore, if you have a breakdown of the subcontractor's costs use it in the formulation above. If you do not have a breakdown you need to use the TOTAL SUBCONTRACTING AMOUNT for item (D) even though you must still breakdown the contractor's costs.

Project Experience Questionnaire

ATTACHMENT 6

Submit responses to the questions below that address experience relative to the elements noted under the Project Experience evaluation subfactor in solicitation section L. Limit submittals to the quantity of projects and timeframes required in the solicitation. Expand the response sections shown below as needed to adequately address each question (this questionnaire may be expanded to multiple pages if needed).

Offeror	Company Name
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REFERENCED PROJECT INFORMATION					
Project Title	Title				
Project Location	City, State				
Brief Project Description	Description				
Project Owner	Company Name	POC:	First & Last Name	Phone:	(XXX) XXX-XXXX

CONTRACTOR LIST						
List Contractor(s) whose experience on the referenced project is being submitted for evaluation on this proposed project. If more than one contractor is listed (i.e. prime and subcontractors), provide information specific to that contractor.						
Contractor Name	Role on Referenced Project (Prime or Sub)	Trade	Price (list for each contractor's specific work)		Performance Period (calendar days) (list for each contractor's specific work)	
			Original	Final	Original	Final
Sparky's Electrical Company	Prime	Prime	\$XXX,XXX	\$X,XXX,XXX	XX	XX
ABC Plumbing & Heating, Co	Subcontractor	Plumbing & Mechanical	\$X,XXX,XXX	\$X,XXX,XXX	XXX	XXX
	Subcontractor					

PROJECT EXPERIENCE QUESTIONS
1. Describe the project work performed by all contractors listed above.
Response
2. Identify which Project Experience elements listed in section L of the solicitation each contractor's work addresses.
Response
3. Describe & provide reasons for any changes to the original price for the work described in question 2 above.
Response
4. Describe and provide reasons for any changes to the original schedule for the work described in question 2 above.
Response
5. Describe problems, associated with the work described in question 2 above, which were encountered and how they were resolved. Describe how the offeror's proposal accounts for similar issues.
Response
6. Describe the means and methods, associated with the work described in question 2 above, which were successful. Would you implement the same means and methods on the proposed project? Why or why not?
Response
7. Provide any other additional project information you believe should be presented.
Response

ATTACHMENT 7

PAST PERFORMANCE QUESTIONNAIRE

SOLICITATION NO. 140P2026R0060

INSTRUCTIONS: [Offeror](#) to complete Sections A and B and transmit questionnaire to reference.
[Reference](#) to complete Sections C and D and transmit back to Contracting Officer listed in section E.

Notice to Contractor

Information provided in this questionnaire is intended for use as source selection information and as such is deemed Source Selection Sensitive. Statements or comments provided in the questionnaire do not signify an express or implied endorsement of any product, supply, service, or enterprise.

This information shall not be construed as an endorsement by the Government or its employee(s) of the contractor for advertising purposes or in a manner that implies the contractor, its products, or services, are approved, endorsed, or considered by the Government to be superior to other products or services.

The contractor shall not be permitted to use any information provided in this questionnaire to publicize, or otherwise circulate, promotional materials that state or imply Governmental, organizational, group, expert, or individual endorsement or consumer testimonial of a product, service, or position which the contractor represents.

A. OFFEROR INFORMATION

Company Name	Company
Street Address	Address
City	City
State	State
Zip Code	XXXXXX
Unique Entity Identifier (UEI) Number / SAM	XXXXXXXX
Point of Contact	Name, Email, Phone

B. CONTRACT INFORMATION FOR PAST PROJECT (PROJECT SUBMITTED UNDER PROJECT EXPERIENCE)

Project Title	Title
Contract Number	XXXXXXXXXX
Contract Type	Firm Fixed Price / Time & Materials / Cost Reimbursable / Other
Awarded Contract Price	\$X,XXX,XXX
Current / Final Price	\$X,XXX,XXX
Contract Award Date	XX/XX/XXXX
Contract Completion Date	XX/XX/XXXX
Period of Performance	XX/XX/XXX – XX/XX/XXX
Project Location	Park or Street address, City, State
Client / Owner	Company
Brief description of the contract & work effort:	Scope of work description

ATTACHMENT 7

PAST PERFORMANCE QUESTIONNAIRE

SOLICITATION NO. 140P2026R0060

C. REFERENCE:

Name	First, Last
Position / Title	Title
Organization	Agency or Company
Phone Number	XXX-XXX-XXXX
Email Address	Email
Signature	Signature
Date	XX/XX/XXXX

D. EVALUATION

Rating	Definition
Exceptional	Performance met contractual requirements and exceeded <i>many</i> to the owner's benefit. The element being assessed was accomplished with <i>few minor problems</i> for which corrective actions taken by the contractor were <i>highly effective</i> .
Very Good	Performance met contractual requirements and exceeded <i>some</i> to the owner's benefit. The element being assessed was accomplished with <i>some minor problems</i> for which corrective actions taken by the contractor were <i>effective</i> .
Satisfactory	Performance met contractual requirements. The element being assessed contains <i>some minor problems</i> for which corrective actions taken by the contractor appear or were <i>satisfactory</i> .
Marginal	Performance <i>did not meet some</i> contractual requirements. The element being assessed reflects a <i>serious problem</i> for which the contractor <i>has not yet identified corrective actions</i> .
Unsatisfactory	Performance does <i>not</i> meet most contractual requirements and <i>recovery is not likely in a timely manner</i> . The element being assessed contains a <i>serious problem(s)</i> for which the contractor's corrective actions appear or were <i>ineffective</i> .

Evaluation Area	Rating
Quality	
Quality of workmanship (including subcontractors)?	Choose an item.
Quality of and adherence to quality control plan?	Choose an item.
Quality of informational and technical submittals?	Choose an item.
Overall Quality Rating	Choose an item.
Comments (Please provide comments supporting the above ratings. Comments supporting ratings of excellent, marginal, & unsatisfactory are especially helpful.):	
Schedule (& Time Management)	
Met project schedule milestones?	Choose an item.
Responded to owner requests in a timely manner?	Choose an item.
Informational and technical submittals submitted timely?	Choose an item.
Promptly addressed scheduling issues?	Choose an item.
Overall Schedule (& Time Management) Rating	Choose an item.
Comments (Please provide comments supporting the above ratings. Comments supporting ratings of excellent, marginal, & unsatisfactory are especially helpful.):	

ATTACHMENT 7

PAST PERFORMANCE QUESTIONNAIRE

SOLICITATION NO. 140P2026R0060

Cost Control	
Addressed differing & unforeseen site conditions so as to minimize additional costs?	Choose an item.
Provided fair and reasonable pricing for contract modifications?	Choose an item.
Submitted accurate and complete invoices?	Choose an item.
Promptly paid subcontractors and suppliers?	Choose an item.
Overall Cost Control Rating	Choose an item.
Comments (Please provide comments supporting the above ratings. Comments supporting ratings of excellent, marginal, & unsatisfactory are especially helpful.):	
Management	
General oversight by project manager and superintendent?	Choose an item.
Coordination with and control of subcontractors?	Choose an item.
Avoidance of accidents & safety violations?	Choose an item.
Addressed location factors (especially remote locations)?	Choose an item.
Maintained good working relationship with owner representatives?	Choose an item.
Demonstrated flexibility, innovativeness and cooperation in resolving potential problems?	Choose an item.
Overall Management Rating	Choose an item.
Comments (Please provide comments supporting the above ratings. Comments supporting ratings of excellent, marginal, & unsatisfactory are especially helpful.):	
Small Business Subcontracting (& Labor Standards)	
Met regulatory and contractual labor standards?	Choose an item.
Successfully contracted with small and socio-economically disadvantaged businesses?	Choose an item.
Quality and adherence to applicable subcontracting plans?	Choose an item.
Overall Small Business Subcontracting (& Labor Standards) Rating	Choose an item.
Comments (Please provide comments supporting the above ratings. Comments supporting ratings of excellent, marginal, & unsatisfactory are especially helpful.):	
Regulatory Compliance	
Met building and life safety codes?	Choose an item.
Overall Regulatory Compliance Rating	Choose an item.
Overall Recommendation:	
Given what I know today about the contractor's ability to perform in accordance with the contract's most significant requirements, I would recommend them for similar contracts:	Choose an item.
Overall Comments:	

ATTACHMENT 7
PAST PERFORMANCE QUESTIONNAIRE

SOLICITATION NO. 140P2026R0060

E. RETURN:

Return by	June 17, 2026 with proposal
Name	Linda Melnick
Title	Contracting Officer
Organization	National Park Service – Denver Service Center
Email	linda_melnick@ios.doi.gov

Profit Calculator for Self Performed Work

Park Acronym / Name: GATE

PMIS #: 308504

(Project Management Information System)

Profit Factors	Maximum Rate Allowed 10.00%	Project Specific Rate
----------------	--------------------------------	-----------------------

Contract Cost Risk

Self Performed Work (Construction Contractor performs all work.):

2.00%

2.00%

Comes with a higher risk for the Construction Contractor and is covered with a higher profit rate. Enter **2.00%** to cover the added risk and for every case since this is a calculation for self performed work.

Contract Type - Fixed Firm Price (FFP):

1.00%

1.00%

Carries more risk than a Cost Plus Fixed Fee (CPFF) contract. If a project is FFP, the maximum 1.00% should be used. If CPFF, then use 0.00%.

Contractor Effort (Complexity of Work)

Percentages are entered to the **Maximum** amount shown within the 5 sub-categories based on the complexity of the work, i.e. retrofit of existing elevator in existing cave shaft while park remains open would warrant a high percentage verses a new parking lot paving project on flat terrain in an open unoccupied area would warrant a low percentage.

General Management:

1.00%

1.00%

Areas to consider for percentage amount:

1. The more complex and technical the work, the more experience and training of management is required to successfully manage the work.
2. The individual components of the work are normal but because of logistics, schedule, and volume, highly qualified management is required.

Since all work requires management, start with 0.10% for the low end and consider up to 1.00% for the most challenging jobs.

Direct Labor Skill Requirement:

1.00%

1.00%

The more specialized and technical the direct work of the project is, the greater need for higher trained labor which has a limited pool of resources to draw from. Since all work requires labor, start with 0.10% for the low end and consider up to 1.00% for more specialized and technical projects.

Safety Requirements:

1.00%

0.50%

Since all projects require safety, start with 0.10% for normal safety requirements but consider up to 1.00% for projects with high risk, i.e. suspended work, explosives, water hazards, confined spaces, hazardous materials, etc.

Equipment Requirements:

1.00%

0.50%

Since the majority of projects require equipment to complete, start with 0.10% for normal equipment requirements but consider up to 1.00% for projects where the equipment becomes highly specialized or numerous, i.e. underground directional drilling equipment verses a dump truck.

Material Requirements:

1.00%

0.75%

Since all projects require material to complete, start with 0.10% for normal material requirements but consider up to 1.00% for projects with technical, specialized, rare, or mostly long lead time materials.

Federal Socioeconomic Program

Disadvantage Business:

2.00%

2.00%

Includes HUBZone and 8A. If 8A, add 2.00%. If HUBZone, add 1.00%. Others, add 0.00%.

Maximum Allowable Profit:

8.75%

After factors have been applied, this is the Profit Percentage to use for the Project on Modifications.

Universal Design & Accessibility Scoping for Buildings & Sites

(Architectural Barriers Act (ABA) Accessibility Standards)

National Park Service (NPS) - Denver Service Center (DSC) | 10-25-24

Use for facilities, buildings (new and existing), parking and drop-off areas, and sites (walks, ramps, plazas, lawns, etc.). Complete where applicable. For checkboxes, N/A=not applicable.

Park: Gateway National Recreation Area

Project Title: Hangars 3&4 Rehabilitation

PMIS Number: GATE 308504

(Project Management Information System)

Prepared By: Quinn Evans

Date: 12/19/2025

Programs and Activities at this Building/Site (existing and proposed)

Site Programs	Amenities	Building Programs	Interpretive Programs
☐ Car Parking	☐ Benches/Seating	☐ Visitor Use Building	☐ Information Desk
☐ Bus Parking	☐ Restrooms	☐ Historic Building	☐ Brochures/Handouts
☐ Recreational Vehicle (RV) Parking	☐ Family Restrooms	☐ Maintenance Building	☐ Audiovisual Programs
☐ Employee Parking	☒ Employee Restrooms	☐ Museum	☐ Exhibits
☐ Building Entrance	☐ Public Telephones	☐ Theater	☐ Interactive Exhibits
☐ Drop-off Area	☒ Drinking Fountains	☐ First Aid/Wellness Room	☐ Large Scale Map
☐ Alternate Transportation	☐ Vending Machines	☐ Information Desk	☐ Tactile Map
☐ Bus/Shuttle Stop	☐ Concessions-Food	☐ Visitor Lodging	☐ Guided Tours
☐ Service Area	☐ Concessions-Ticketing	☐ Employee Housing	☐ Educational Programs
☐ Walks	☐ Gift Shop	☐ Conference Rooms	☐ Museum Objects
☐ Shelters	☐ Bookstore	☐ Office Space	☐ Waysides
☐ Seating/Gathering Space	☐ Trash/Recycling	☐ Kitchen/Break Room	☐ Special Events
☐ Cultural Landscape	☐ Bicycle Racks/Rental	☐ Elevator	☐ Self-Guided Walks
☐ Other:	☐ Other:	☒ Other: Storage	☐ Other:
☐ Other:	☐ Other:	☐ Other:	☐ Other:
☐ Other:	☐ Other:	☐ Other:	☐ Other:
☐ Other:	☐ Other:	☐ Other:	☐ Other:
☐ Other:	☐ Other:	☐ Other:	☐ Other:
☐ Other:	☐ Other:	☒ Other:	☐ Other:

Universal Design

The design of products and environments to be usable by all people, to the greatest extent possible, without the need for adaptation or specialized design. A human-centered design with all users in mind.

1. [The Principles of Universal Design](#) (North Carolina State University (NCSU) > [Center for Universal Design](#)) - Utilize throughout the design process to provide a facility usable by all.

1. ☒ Yes ☐ No ☐ N/A **Principle 1: Equitable Use**
The design is useful and marketable to people with diverse abilities. Is the same means of use provided for all users, identical whenever possible, equivalent when not?
2. ☐ Yes ☐ No ☒ N/A **Principle 2: Flexibility in Use**
Does the design accommodate a wide range of individual preferences and abilities? Is a choice of method provided?
3. ☐ Yes ☐ No ☒ N/A **Principle 3: Simple and Intuitive Use**
Use of the design is easy to understand, regardless of the user's experience, knowledge, language skills, or current concentration level.
4. ☐ Yes ☐ No ☒ N/A **Principle 4: Perceptible Information**
Does the design communicate necessary information effectively to the user, regardless of ambient conditions or the user's sensory abilities?
5. ☒ Yes ☐ No ☐ N/A **Principle 5: Tolerance for Error**
Is there a tolerance for error? Does the design minimize hazards and adverse consequences of accidental or unintended actions?
6. ☒ Yes ☐ No ☐ N/A **Principle 6: Low Physical Effort**
Does the design require low physical effort? Can the design be used efficiently and comfortably and with a minimum of fatigue?
7. ☒ Yes ☐ No ☐ N/A **Principle 7: Size and Space for Approach and Use**
Is there appropriate size and space provided for approach, reach, manipulation, and use regardless of user's body size, posture, or mobility? Is there adequate space provided for using assistive devices or personal assistance?

2. DSC Universal Design Best Practice Requirements

*If requirement cannot be met, describe reason for departure and accommodations provided.

- a. ☐ Yes ☐ No* ☒ N/A **Integrated Pedestrian Routes**
Project is designed for all users to follow the same routes through the facility and site. Describe any departure:
[Click or tap here to enter text.](#)
- b. ☒ Yes ☐ No* ☐ N/A **Level Entrance**
Project is designed with no steps at primary entrances (visitor and employee). Staired secondary routes can be included on sloped sites. Describe any departure:
[Click or tap here to enter text.](#)

- c. ☐ Yes ☐ No* ☒ N/A **Covered Entry**

Project provides a covered entry and roof drains away from entry walk and entrance. Describe any departure:

[Click or tap here to enter text.](#)

- d. ☐ Yes ☐ No* ☒ N/A **Closed-in Parking and Drop-off**

Distance from drop-off and closest accessible parking space (car and RV/Bus) to accessible entrance of facility is 200 feet or less. Describe any departure:

[Click or tap here to enter text.](#)

- e. ☐ Yes ☐ No* ☒ N/A **Power Assist Entrance Doors**

Visitor use buildings provide power assist door openers on main accessible entrances. Describe any departure:

[Click or tap here to enter text.](#)

- f. ☒ Yes ☐ No* ☐ N/A **Accessibility Plans**

Provide accessibility plans to identify project universal design and accessibility goals. Include site plan with accessible parking and accessible routes with slope requirements; floorplans with accessible features, accessible routes, turning space, maneuvering space and reach ranges shown.

[Click or tap here to enter text.](#)

[ABA Accessibility Standards](#) - Chapter 2 Scoping Requirements

3. [F202 Existing Buildings and Facilities](#)

Renovations and additions including historic facilities.

- a. ☒ Yes ☐ No ☐ N/A [F202.2.1 Accessible Route](#)

- b. ☒ Yes ☐ No ☐ N/A [F202.2.3 Toilet and Bathing Facilities](#)

- c. ☐ Yes ☐ No ☒ N/A [F202.3.1 Prohibited Reduction in Access](#)

- d. ☐ Yes ☐ No ☒ N/A **Entrances to Existing Facilities**

If project is a historic building, is the accessible route the same as the general public route? If not, does the accessible route rejoin the general route quickly and intuitively?

- e. ☐ Yes ☐ No ☒ N/A **Exception**

The only exceptions used for qualified historic buildings and facilities are 1 accessible route to 1 accessible entrance (instead of standard 60% of entrances), at least 1 accessible floor in a multi-story building, and no less than 1 toilet room for each sex complying with [603](#) or 1 unisex toilet room.

- f. ☐ Yes ☐ No ☒ N/A **State Historic Preservation Officer (SHPO) Concurrence**

If any of these exceptions are taken, is there a concurrence memo from the SHPO? [F202.5](#) - These exceptions apply only when the State Historic Preservation Officer agrees that compliance with requirements for the specific element would threaten or destroy the historic significance of the building or facility.

4. [F203 General Exceptions](#)

Facility spaces not required to comply with ABA Accessibility Standards requirements. A project element meets 1 of the following exceptions.

- a. ☐ Yes ☐ No ☒ N/A [F203.4 Raised Areas](#)
- b. ☐ Yes ☐ No ☒ N/A [F203.5 Limited Access Spaces](#)
- c. ☐ Yes ☐ No ☒ N/A [F203.6 Machinery Spaces](#)
- d. ☐ Yes ☐ No ☒ N/A [F203.7 Single Occupant Structures](#)

5. [F205 Operable Parts](#)

- a. ☒ Yes ☐ No ☐ N/A **Hardware**
Door, window, restroom and furnishing hardware, levers, knobs, openers, etc., can be operated with 1 hand and do not require tight grasping, pinching, or twisting of the wrist; are designed between 15 inches minimum and 48 inches maximum above the finished floor. The force required to operate hardware is 5 pounds maximum.
- b. ☒ Yes ☐ No ☐ N/A **Operable Parts**
Light switches, electrical outlets, appliance controls, window blind controls, etc., are designed between 15 inches minimum and 48 inches maximum above the finished floor. The force required to activate operable parts is 5 pounds maximum.

6. [F206 Accessible Routes](#)

- a. ☒ Yes ☐ No ☐ N/A [F206.2.2 Within a Site](#)
- b. ☐ Yes ☐ No ☒ N/A [F206.2.3 Multi-Story Buildings and Facilities](#)
- c. ☐ Yes ☐ No ☒ N/A F206.2.3 > Exception 1
- d. ☐ Yes ☐ No ☒ N/A F206.2.3 > Exception 6
- e. ☒ Yes ☐ No ☐ N/A [F206.3 Location](#)
- f. ☐ Yes ☐ No ☒ N/A [F206.4 Entrances](#)

7. [F206.5 Doors, Doorways and Gates](#)

- a. ☒ Yes ☐ No ☐ N/A **Clear Floor Space on Both Sides of Accessible Doors**
Accessible doors are designed to have adequate clear floor space meeting **Figure 404.2.4.1** in section [404.2.4.1 Swinging Doors and Gates](#).
- b. ☒ Yes ☐ No ☐ N/A [F206.5.1 Entrances](#)
- c. ☒ Yes ☐ No ☐ N/A [F206.5.2 Rooms and Spaces](#)

8. [F207 Accessible Means of Egress](#)

- a. ☒ Yes ☐ No ☐ N/A [F207.1 General](#)
The accessible egress route is shown on code plan.

- b. ☐ Yes ☐ No ☒ N/A **Areas of Refuge**

This project includes areas of refuge complying with International Building Code (IBC) that serve as a part of the accessible means of egress. The accessible egress route is shown on code plan.

- c. ☐ Yes ☐ No ☒ N/A [F207.2 Platform Lifts](#)

9. [F208 Parking Spaces](#)

Newly constructed parking facilities shall provide accessible parking spaces in accordance with Table F208.2. Where a parking facility provides separate types of parking spaces (car, recreational vehicle, bus, drop-off/unloading, etc.), Table F208.2 shall apply to each separate type of parking space provided.

Parking Spaces: Refer to **Table F208.2** under [F208.2 Minimum Number](#).

Total number of parking spaces provided: Click or tap here to enter text.

Number of accessible parking spaces provided (including van spaces): Click or tap here to enter text.

Number of van accessible parking spaces provided: Click or tap here to enter text.

Number of RV/bus accessible parking spaces provided: Click or tap here to enter text.

- a. ☐ Yes ☐ No ☒ N/A [F208.2 Minimum Number](#)

- b. ☐ Yes ☐ No ☒ N/A [F208.2.4 Van Parking Spaces](#)

- c. ☐ Yes ☐ No ☒ N/A [F208.3 Location](#)

- d. ☐ Yes ☐ No ☒ N/A **Oversized Vehicle Location**

Accessible oversized parking spaces for recreational vehicles (RVs) and buses are located on the shortest accessible route from the oversized vehicle parking facility to an accessible entrance. Accessible spaces are 200 feet or less from entrance.

- e. ☐ Yes ☐ No ☒ N/A **Employee Parking Location**

Accessible employee parking spaces are located on the shortest accessible route from the employee parking area to an accessible employee entrance. Accessible spaces are 200 feet or less from entrance.

- f. ☐ Yes ☐ No ☒ N/A **Dispersed Locations**

Where parking serves more than 1 accessible entrance or program, accessible parking spaces are dispersed and located on the shortest accessible route (200 feet or less) to the accessible entrances or program.

10. [F209 Passenger Loading Zones and Bus Stops](#)

- a. ☐ Yes ☐ No ☒ N/A [503 Passenger Loading Zones](#)

11. [F211 Drinking Fountains](#)

- a. ☒ Yes ☐ No ☐ N/A [F211.2 Minimum Number](#)

12. [F213 Toilet Facilities and Bathing Facilities](#)

- a. ☒ Yes ☐ No ☐ N/A [F213.3.1 Toilet Compartments](#)

- b. ☒ Yes ☐ No ☐ N/A **1109.2.1 (IBC) Unisex toilet rooms**
In assembly and mercantile occupancies, an accessible unisex toilet room is provided where an aggregate of 6 or more male and female water closets is required.
- c. ☒ Yes ☐ No ☐ N/A [F213.3.3 Urinals](#)
- d. ☒ Yes ☐ No ☐ N/A [F213.3.4 Lavatories](#)
- e. ☒ Yes ☐ No ☐ N/A [F213.3.5 Mirrors](#)
- f. ☐ Yes ☐ No ☒ N/A [F213.3.6 Bathing Facilities](#)
- g. ☒ Yes ☐ No ☐ N/A [F213.3.7 Coat Hooks and Shelves](#)

13. [F215 Fire Alarm Systems](#)

- a. ☐ Yes ☐ No ☒ N/A [F215.2 Public and Common Use Areas](#)
- b. ☐ Yes ☐ No ☒ N/A [F215.3 Employee Work Areas](#)
- c. ☐ Yes ☐ No ☒ N/A [F215.4 Transient Lodging](#)
- d. ☐ Yes ☐ No ☒ N/A [F215.5 Residential Dwelling Units](#)

14. [F216 Signs](#)

- a. ☐ Yes ☐ No ☒ N/A [F216.2 Designations](#)
- b. ☒ Yes ☐ No ☐ N/A [F216.4 Means of Egress](#)
- c. ☒ Yes ☐ No ☐ N/A [F216.4.1 Exit Doors](#)
- d. ☐ Yes ☐ No ☒ N/A [F216.4.2 Areas of Refuge](#)
- e. ☐ Yes ☐ No ☒ N/A [F216.4.3 Directional Signs](#)
- f. ☐ Yes ☐ No ☒ N/A [F216.5 Parking](#)
- g. ☐ Yes ☐ No ☒ N/A F216.5 Parking > Exception 1
- h. ☐ Yes ☐ No ☒ N/A [F216.6 Entrances](#)
- i. ☐ Yes ☐ No ☒ N/A [F216.10 Assistive Listening Systems](#)

15. [F219 Assistive Listening Systems](#)

- a. ☐ Yes ☐ No ☒ N/A [F219.2 Required Systems](#)
- b. ☐ Yes ☐ No ☒ N/A [F219.3 Receivers](#)

16. [F221 Assembly Areas](#) and Outdoor Seating Areas

Number of Wheelchair Spaces in Assembly Areas: Refer to **Table F221.2.1.1** under [F221.2.1.1 General Seating](#).

Number of seats in assembly area (theater or seating area, bench length/24 inches): Click or tap here to enter text.

Minimum number of required wheelchair spaces in assembly area: Click or tap here to enter text.

Number of seats in exterior seating area: Click or tap here to enter text.

Minimum number of required wheelchair spaces in exterior seating area: Click or tap here to enter text.

- a. ☐ Yes ☐ No ☒ N/A [F221.1 General](#)
- b. ☐ Yes ☐ No ☒ N/A [F221.2.1 Number and Location](#)
- c. ☐ Yes ☐ No ☒ N/A [F221.2.2 Integration](#)
- d. ☐ Yes ☐ No ☒ N/A [F221.2.3 Lines of Sight and Dispersion](#)
- e. ☐ Yes ☐ No ☒ N/A [F221.2.3.1 Horizontal Dispersion](#)
[F221.2.3.2 Vertical Dispersion](#)
- f. ☐ Yes ☐ No ☒ N/A [F221.3 Companion Seats](#)
- g. ☐ Yes ☐ No ☒ N/A [F221.4 Designated Aisle Seats](#)
- h. ☐ Yes ☐ No ☒ N/A [F221.5 Lawn Seating](#)
- i. ☐ Yes ☐ No ☒ N/A **Exterior Seating Areas**
Site seating areas accommodating 4 or more persons (2 benches or more) provide integrated wheelchair seating.

17. [F226 Dining Surfaces and Work Surfaces](#)

- a. ☐ Yes ☐ No ☒ N/A [F226.1 General](#)
- b. ☐ Yes ☐ No ☒ N/A [F226.2 Dispersion](#)

18. [F229 Windows](#)

- a. ☐ Yes ☐ No ☒ N/A [F229.1 General](#)
- b. ☐ Yes ☐ No ☒ N/A **Window Coverings**

Window coverings, blinds, etc. provided in accessible rooms or spaces are designed to be operable at accessible reach ranges ([308](#)) less than 48 inches above floor, allow adequate clear floor space for operation and comply with [309](#).

19. Notes

Click or tap here to enter text.

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PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION K – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

SIGNATURE EXTENSION

If the Offeror is a partnership or a joint venture, all partners or joint venture representatives are required to sign as Contractors. Signatures shall be provided below:

Name: Name:
Title: Title:

PROVISIONS INCORPORATED BY REFERENCE

The following contract clauses pertinent to this section are incorporated by reference (by Citation Number, Title, and Date) per the clause at FAR “52.252-2 CLAUSES INCORPORATED BY REFERENCE” in Section I of this contract. See FAR 52.252-2 for an internet address (if specified) for electronic access to a clause’s full text.

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025) (DEVIATION FEB 2025)

- (a) (1) The North American Industry Classification System (NAICS) code for this acquisition is 236220
- (b) (2) The small business size standard is \$45M
- (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—
 - (i) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the Offeror waives the price evaluation preference; or
 - (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b) (1) If the provision at [52.204-7](#), System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.
- (2) If the provision at [52.204-7](#), System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:
 - (i) ☐ Paragraph (d) applies.
 - (ii) ☐ Paragraph (d) does not apply, and the Offeror has completed the individual representations and certifications in the solicitation.
- (c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:
 - (i) [52.203-2](#), Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—
 - (A) The acquisition is to be made under the simplified acquisition procedures in [part 13](#);
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.

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- (ii) [52.203-11](#), Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) [52.203-18](#), Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) [52.204-3](#), Taxpayer Identification. This provision applies to solicitations that do not include the provision at [52.204-7](#), System for Award Management.
- (v) [52.204-5](#), Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) [52.204-26](#), Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) [52.209-2](#), Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) [52.209-5](#), Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) [52.209-11](#), Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) [52.214-14](#), Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) [52.215-6](#), Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) [52.219-1](#), Small Business Program Representations (Basic, Alternates I, and II)). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the Contracting Officer has applied part 19 in accordance with 19.000(b)(1)(ii).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) [52.219-2](#), Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the Contracting Officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) Reserved.
- (xv) Reserved.
- (xvi) [52.222-38](#), Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) [52.223-1](#), Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA–designated items; or include the clause at [52.223-2](#), Affirmative Procurement of Biobased Products Under Service and Construction Contracts.
- (xviii) [52.223-4](#), Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items.

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- (xix) ~~52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals Representation. This provision applies to solicitations that include the provision at 52.204-7.~~
- (xx) [52.225-2](#), Buy American Certificate. This provision applies to solicitations containing the clause at [52.225-1](#).
- (xxi) [52.225-4](#), Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternate I (Reserved), Alternates II, and III (JAN 2025) This provision applies to solicitations containing the clause at [52.225-3](#) (Alternate I (Reserved), Alternate II (JAN 2025), and Alternate III (FEB 2024).
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies
- (xxii) [52.225-6](#), Trade Agreements Certificate. This provision applies to solicitations containing the clause at [52.225-5](#).
- (xxiii) [52.225-20](#), Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) [52.225-25](#), Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) [52.226-2](#), Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

- ☐ (i) [52.204-17](#), Ownership or Control of Offeror.
- ☒ (ii) [52.204-20](#), Predecessor of Offeror.
- ☒ (iii) [52.222-18](#), Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) [52.222-48](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) [52.222-52](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ☐ (vi) [52.227-6](#), Royalty Information.
- ☐ (A) Basic.
- ☐ (B) Alternate I.
- ☐ (viii) [52.227-15](#), Representation of Limited Rights Data and Restricted Computer Software.

- (d) The Offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR [4.1201](#)); except for the changes identified below [*Offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change

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Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of Provision)

52.204-24 REPRESENTATIONS REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES AND EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(c) *Prohibition.*

- (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—
 - (i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
 - (ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.
- (2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—
 - (i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
 - (ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(e) *Representation.* The Offeror represents that—

- (1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the

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additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

- (2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—
It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(f) *Disclosures.*

- (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:
- (i) For covered equipment—
 - (A) The entity that produced the covered telecommunications equipment (include entity name, UEI, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);
 - (B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
 - (C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.
 - (i) For covered services—
 - (A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
 - (B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.
- (2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:
- (i) For covered equipment—
 - (A) The entity that produced the covered telecommunications equipment (include entity name, UEI, CAGE code, and whether the entity was the OEM or a distributor, if known);
 - (B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
 - (C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.
 - (ii) For covered services—
 - (A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
 - (B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

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52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

- (a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
- (b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.
- (c) *Representation.* (1) The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
- (2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – REPRESENTATION AND DISCLOSURES (DEC 2023)

- (a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system* and *Source* have the meaning provided in the clause [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.
- (b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.
- (c) *Procedures.* (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM) (<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.
- (2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR [4.2303\(c\)\(2\)](#)).
- (3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.
- (d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).
- (e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer.
 - (1) Name of the product or service provided to the Government;
 - (2) Name of the covered article or source subject to a FASCSA order;
 - (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

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- (4) Brand;
- (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (6) Item description;
- (7) Reason why the applicable covered article or the product or service is being provided or used;
- (f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of Provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

- (a) *Definitions.* As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

- (b) The Offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.
- (c) If the Offeror checked “has” in paragraph (b) of this provision, the Offeror represents, by submission of this offer, that the information it has entered in the System for Award Management via <https://www.sam.gov> under “Responsibility / Qualification” is current, accurate, and complete as of the date of submission of this offer with regard to the following information:
 - (1) Whether the Offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
 - (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
 - (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
 - (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
 - (2) If the Offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the Offeror has provided the requested information with regard to each occurrence.
- (d) The Offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision as required through maintaining an active registration in the System for Award Management via <https://www.sam.gov> (see 52.204-7).

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(End of Provision)

52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2020)

- (a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.
- (b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it
 - (1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;
 - (2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and
 - (3) Has not ☐, more than 90-days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of Provision)

52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (NOV 2021)

- (a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation [2.101](#).
- (b) *Certification. [Offeror shall check either (1) or (2).]*
 - ☐ (1) The Offeror certifies that–
 - (i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and
 - (ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or
 - ☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.
- (c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.
 - (1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

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- (2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:
- (i) An inability to certify compliance.
 - (ii) An inability to conclude compliance.
 - (iii) A statement about compliance concerns.
- (3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.
- (4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.
- (d) Do not submit an offer unless—
- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
 - (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has:
 - (i) Waived application under [22 U.S.C. 2593e](#)(d) or (e); or
 - (ii) Determined under [22 U.S.C. 2593e](#)(g)(2) that the entity has ceased all activities for which measures were imposed under [22 U.S.C. 2593e](#)(b).
- (e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of Provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

- (a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

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Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

*(1) The North American Industry Classification System (NAICS) code for this acquisition is **236220***

*(2) The small business size standard **\$45M**.*

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

i. Is set aside for small business and has a value above the simplified acquisition threshold;

ii. Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

iii. Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

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- (2) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.*
- (3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*
- (4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*
- (5) *SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*
- (6) *HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.*
- (d) *Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—*
- (1) Punished by imposition of fine, imprisonment, or both;*
 - (2) Subject to administrative remedies, including suspension and debarment; and*
 - (3) Ineligible for participation in programs conducted under the authority of the Act.*

(End of Provision)

52.223-1 BIOBASED PRODUCT CERTIFICATION MAY 2024 (DEVIATION FEB 2025)

As required by the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8101(4)) and the Energy Policy Act of 2005 (7 U.S.C. 8102(a)(2)(F)), the offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture in <https://www.biopreferred.gov/resources/categories.html>) to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of Provision)

52.236-28 PREPARATION OF PROPOSALS-CONSTRUCTION (OCT 1997)

- (a) Proposals must be (1) submitted on the forms furnished by the Government or on copies of those forms; and (2) manually signed. The person signing a proposal must initial each erasure or change appearing on any proposal form.
- (b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including-

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(1) Lump sum price;

(2) Alternate prices;

(3) Units of construction; or

(4) Any combination of paragraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words "no proposal" in the space provided for any item on which no price is submitted.

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

(End of provision)

End of Section K

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SECTION L – INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

PROVISIONS INCORPORATED BY REFERENCE

The following solicitation provisions pertinent to this section are incorporated by reference (by Citation Number, Title, and Date) per the provision at FAR “52.252-1 PROVISIONS INCORPORATED BY REFERENCE” in Section L of this contract.

Federal Acquisition Regulation: <https://www.acquisition.gov/far/>. For provisions incorporated by reference with “DEVIATION” use the FAR Overhaul section of the website.

Department of the Interior Acquisition Regulation (CFR, Title 48, Chapter 14): http://www.ecfr.gov/cgi-bin/text-idx?SID=46fff09635987db3af784ea3c7efc2e0&mc=true&tpl=/ecfrbrowse/Title48/48cfrv5_02.tpl#1400

See FAR 52.252-1 for an internet address (if specified) for electronic access to a clause’s full text.

52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)
52.204-22	ALTERNATE LINE-ITEM PROPOSAL (JAN 2017)
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)
52.214-35	SUBMISSION OF OFFERS IN U.S. CURRENCY (APR 1991)
52.215-1	INSTRUCTIONS TO OFFERORS—COMPETITIVE ACQUISITION (NOV 2021)
52.215-16	FACILITIES CAPITAL COST OF MONEY (JUN 2003)
52.222-5	CONSTRUCTION WAGE RATE REQUIREMENTS—SECONDARY SITE OF THE WORK (MAY 2014)

(End of clause)

52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED OR PRICING DATA (NOV 2021)

- (a) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, offerors may submit a written request for exception by submitting the information described in the following paragraphs. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.
 - (i) *Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.
 - (ii) *Commercial product and commercial service exception.* For a commercial product and commercial service exception, the offeror shall submit, at a minimum, information on prices at which the same item or similar items have previously been sold in the commercial market that is adequate for evaluating the reasonableness of the price for this acquisition. Such information may include.
 - (A) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), *e.g.*, wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities;
 - (B) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market;
 - (C) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.
- (2) The offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision,

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and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the offeror's determination of the prices to be offered in the catalog or marketplace.

- (b) *Requirements for certified cost or pricing data.* If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:
- (1) The offeror shall prepare and submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in [Table 15-1](#) of FAR [15.408](#), which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in [Table 15-1](#) are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.
 - (2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR [15.406-2](#).

(End of Provision)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price contract for construction resulting from this solicitation.

(End of Provision)

52.225-12 NOTICE OF BUY AMERICAN REQUIREMENT – CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (MAY 2014)

- (a) Definitions. “Commercially available off-the-shelf (COTS) item,” “construction material,” “designated country construction material,” “domestic construction material,” and “foreign construction material,” as used in this provision, are defined in the clause of this solicitation entitled “Buy American—Construction Materials Under Trade Agreements” (Federal Acquisition Regulation (FAR) clause [52.225-11](#)).
- (b) Requests for determination of inapplicability. An Offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The Offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause [52.225-11](#) in the request. If an Offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer or has not received a response to a previous request, the Offeror shall include the information and supporting data in the offer.
- (c) Evaluation of offers.
 - (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause [52.225-11](#).
 - (2) If evaluation results in a tie between an Offeror that requested the substitution of foreign construction material based on unreasonable cost and an Offeror that did not request an exception, the Contracting Officer will award to the Offeror that did not request an exception based on unreasonable cost.
- (d) Alternate offers.
 - (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause [52.225-11](#), the Offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.
 - (2) If an alternate offer is submitted, the Offeror shall submit a separate [Standard Form 1442](#) for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause [52.225-11](#) for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

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(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause [52.225-11](#) does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the Offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested—

- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or
- (ii) May be accepted if revised during negotiations.

(End of Provision)

52.228-1 BID GUARANTEE (SEP 1996)

- (a) Failure to furnish a proposal guarantee in the proper form and amount, by the time proposals are due, may be cause for rejection of the proposal.
- (b) 52.22 The Offeror shall furnish a proposal guarantee in the form of a firm commitment, *e.g.*, proposal bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return proposal guarantees, other than proposal bonds—
 - (1) To unsuccessful Offerors as soon as practicable after the contract award; and
 - (2) To the successful Offeror upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the proposal as accepted.
- (c) The amount of the proposal guarantee shall be 20% percent of the total proposal price or \$3,000,000 whichever is less.
- (d) If the successful Offeror, upon acceptance of its proposal by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10-days after receipt of the forms by the Offeror, the Contracting Officer may terminate the contract for default.
- (e) In the event the contract is terminated for default, the Offeror is liable for any cost of acquiring the work that exceeds the amount of its proposal, and the proposal guarantee is available to offset the difference.

(End of Provision)

52.228-17 INDIVIDUAL SURETY – PLEDGE OF ASSETS (BID GUARANTEE) (FEB 2021)

- (a) Offeror shall obtain from each person acting as an individual surety on a big guarantee-
 - (1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) [28.203-1](#); and
 - (2) Standard Form 28, Affidavit of Individual Surety.
- (b) The Offeror shall include with its offer the information required at paragraph (a) of this provision within the timeframe specified in the provision at FAR [52.228-1](#), Bid Guarantee, or as otherwise established by the Contracting Officer.
- (c) The Contracting Officer may release the security interest on the individual surety's assets in support of a bid guarantee based upon evidence that the offer supported by the individual surety will not result in contract award.

(End of Provision)

52.232-38 SUBMISSION OF ELECTRONIC FUNDS TRANSFER INFORMATION WITH OFFER (JUL 2013)

The offeror shall provide, with its offer, the following information that is required to make payment by electronic funds transfer (EFT) under any contract that results from this solicitation. This submission satisfies the requirement to provide EFT information

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under paragraphs (b)(1) and (j) of the clause at [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management.

- (1) The solicitation number (or other procurement identification number).
- (2) The offeror's name and remittance address, as stated in the offer.
- (3) The signature (manual or electronic, as appropriate), title, and telephone number of the offeror's official authorized to provide this information.
- (4) The name, address, and 9-digit Routing Transit Number of the offeror's financial agent.
- (5) The offeror's account number and the type of account (checking, savings, or lockbox).
- (6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the offeror's financial agent.
- (7) If applicable, the offeror shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the offeror's financial agent is not directly on-line to the Fedwire and, therefore, not the receiver of the wire transfer payment.

(End of Provision)

52.233-2 SERVICE OF PROTEST DEPARTMENT OF THE INTERIOR (JUL 1996) (DEVIATION)

- (a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Linda Melnick.

NPS/DSC: CONTRACTING SERVICES
C/O Linda Melnick/Contracting Officer
3114 Lohof Drive
Billings, MT 59102
And email to Linda_Melnick@ios.doi.gov. & Matt_Kutch@NPS.gov

- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.
- (c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW, Room 6511, Washington, DC 20240.

(End of Provision)

52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995) ALT I

- (a) The clauses at [52.236-2](#), Differing Site Conditions, and [52.236-3](#), Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, Offerors or quoters are urged and expected to inspect the site where the work will be performed.
- (b) Participants will meet Thursday May 21, 2026, at 10 am ET at Ryan Center at Floyd Bennett Field

Ryan Visitor Center - 1 Floyd Bennett Field, Brooklyn, NY 11234
Coordinates: 40.588099, -73.897067

Matt Kutch Work Cell: 720-885-0207

(End of Provision)

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52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):
<https://www.acquisition.gov/content/regulations>

(End of Provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.
- (b) The use in this solicitation of any Department of Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION—DEPARTMENT OF THE INTERIOR (APR 1984)

- (a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:
 - (1) “Trade Secret” means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.
 - (2) “Confidential commercial or financial information” means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers “commercial and financial information obtained from a person and privileged or confidential,” and exemption (9), which covers “geological and geophysical information, including maps, concerning wells.”
- (b) If the Offeror, or its Subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

“The information specifically identified on pages of this proposal constitutes trade secrets or confidential commercial and financial information which the Offeror believes to be exempt from disclosure under the Freedom of Information Act. The Offeror requests that this information not be disclosed to the public, except as may be required by law. The Offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the Offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.”

- (c) The Offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the Offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

- (b) Information in a proposal identified by an Offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the Offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

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- (c) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the Offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The Offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the Offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the Offeror will be notified of this determination prior to disclosure of the information.
- (d) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the Offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an Offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the Offeror had intended to mark, but that markings were omitted from the Offeror's proposal due to clerical error.

(End of Provision)

SPECIAL INSTRUCTION: BRAND NAME OR EQUAL

- (a) If an item in this solicitation is identified as “brand name or equal,” the purchase description reflects the characteristics and level of quality that will satisfy the Government’s needs. The salient physical, functional, or performance characteristics that “equal” products must meet are specified in the solicitation.
- (b) To be considered for award, offers of “equal” products, including “equal” products of the brand name manufacturer, must-
- (1) Meet the salient physical, functional, or performance characteristics specified in this solicitation;
 - (2) Clearly identify the item by-
 - i. Brand name, if any; and
 - ii. Make or model number;
 - (3) Include descriptive literature such as illustrations, drawings, or a clear reference to previously furnished descriptive data or information available to the Contracting Officer; and
 - (4) Clearly describe any modifications the offeror plans to make in a product to make it conform to the solicitation requirements. Mark any descriptive material to clearly show the modifications.
- (c) The Contracting Officer will evaluate “equal” products on the basis of information furnished by the offeror or identified in the offer and reasonably available to the Contracting Officer. The Contracting Officer is not responsible for locating or obtaining any information not identified in the offer.
- (d) Unless the offeror clearly indicates in its offer that the product being offered is an “equal” product, the offeror shall provide the brand name product referenced in the solicitation.

(End of Special Instruction)

INSTRUCTIONS FOR THE SUBMISSION OF OFFERS AND OTHER INFORMATION – COMPETITIVE SOURCE SELECTION

A. GENERAL

1. Submit, at a minimum, an offer that conforms to the solicitation documents. By submission of an offer, the Offeror unconditionally assents to the terms and conditions in this solicitation and in any solicitation attachments. Proposals offering alternative stipulations to the requirements of this solicitation will NOT be considered or accepted.
2. In accordance with FAR 36.209, all firms, Prime Contractors or subconsultants, involved in developing the design or specifications for this construction solicitation are not eligible and prohibited from receiving any part of this

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construction award. Proposals from or containing firms under these circumstances will not be considered for award.

B. QUESTIONS

Pre-proposal questions shall be submitted no later than **May 29, 2026, COB**. Submit questions only through email to both of the following:

Contracting Officer, Linda Melnick : Linda_Melnick@ios.doi.gov

Portfolio / Program Manager: Matt Kutch: Matt_Kutch@nps.gov

C. OFFER DUE DATE AND LOCATION

To be considered for award, proposals must be received no later than the date and time noted in Block 13.a of the SF 1442 contained in this solicitation. Offerors are responsible for confirming their proposals are received by the due date and time.

D. SUBMISSION REQUIREMENTS

1. Proposals shall be submitted via email. Proposals submitted via any means other than email shall not be accepted.
2. Proposals shall be sent to all of the following:
Contracting Officer: Linda_Melnick@ios.doi.gov
 - a. CS_DSC_Proposal_Submission@nps.gov
3. Title subject line for all proposal submissions shall contain the solicitation number, Park-PMIS, and number of total emails, per the following example:
Subject: GATE 308504 140P2026R0060, email x of x
4. Submit proposals in separate VOLUMES (I and II) in the FORMATS specified, containing CONTENTS required. Each volume shall be submitted in separate email attachments.
5. Size limitations:
 - a. Individual email attachments shall be no larger than 38 MB.
 - b. Each email shall be no larger than 100 MB.
6. Offerors shall verify receipt of proposals.

E. VOLUME I, TECHNICAL PROPOSAL – FORMAT, ORGANIZATION, CONTENTS

1. **FORMAT:** Submit (1) one electronic copy. No hard copies shall be submitted.
2. **ORGANIZATION:** Include folders and files for electronic formats named in Section L as follows:

FACTOR 1 –PROJECT EXPERIENCE

FACTOR 2 – TECHNICAL APPROACH

FACTOR 3 – PROJECT TEAM

FACTOR 4 – CONSTRUCTION SCHEDULE

FACTOR 5 -PAST PERFORMANCE

3. **CONTENTS:**

FACTOR 1 - PROJECT EXPERIENCE

Submit the attached "Project Experience" form addressing specific experience aspects below for up to **3 relevant projects completed in the last 10 years**. Submit separate forms for each project. Key Trades, if evaluated, are subject to substitution requirements in Section H of this solicitation and resulting contract. NOTE: Submit the same projects for Past Performance (Factor #5) as submitted under this factor.

- **Teaming Experience:** Describe your experience as a Prime Contractor working with the proposed team (key personnel and key Subcontractors). Prime Contractor experience is experience as a General Contractor managing multiple Subcontractors on projects you self-performed at least 15% of the cost of the contract, excluding materials.

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FACTOR 2 – TECHNICAL APPROACH

Technical approach is your means and methods to complete a technical aspect of required work in this solicitation. Submit a written narrative limited to 15 pages describing your technical approach to the specific aspects below. Additional pages will not be evaluated. Pictures can be included and will count towards the page limitation.

- **Logistics, Coordination, Risks**: Provide a written technical approach for performing this construction project which demonstrates a clear understanding of the project and how the work will be accomplished. Consider all unique challenges relating to project scope, and any creative and innovative ideas to execute the project in an expeditious manner. Submit a risk analysis identifying critical issues, potential problems, and/or areas of concern with recommended solutions.
- **Natural, Cultural or Historic Resources**: Describe your approach for protection and preservation of natural/cultural/historic resources as required in the solicitation, including but not limited to requirements in the Construction Drawings and Construction Specifications

FACTOR 3 – PROJECT TEAM

Submit resumes for key personnel as identified in this solicitation at Section H and listed below. All personnel proposed are subject to substitution requirements contained in this solicitation. In accordance with the contract requirements the QC supervisor shall have no other duties. There is no preprinted form for this submittal.

Key Personnel:

Project Manager
Superintendent
QC Supervisor

Roles and Responsibilities: Submit an organizational chart identifying the project team with major subcontractors and key personnel, identifying specific roles, responsibilities, and lines of authority.

FACTOR 4 - CONSTRUCTION SCHEDULE

Submit your schedule in MS Project Gantt Chart format; for evaluation purposes only, assume a Notice to Proceed date of October 1, 2026; however, this may or may not become the actual Notice to Proceed date and is for evaluation purposes only. (NOTE: This is a concept schedule used to assure the contractor understands the scope and sequencing of the project and is not considered a post award construction submittal.) Specific information to be included shall be as follows:

1. Include specific activities required for this project and a clear critical path with major milestones and applicable predecessor activities. This shall include but not be limited to Division 1 submittals, commissioning activities, procurement lead times. Include an appropriate level of detail to demonstrate an understanding of the construction sequencing for the project. Consider sequencing and durations of activities to show accomplishment of the work within the work restrictions identified in the specifications.
2. In your accompanying narrative, explain schedule logic, critical path activities, and key risk considerations and constraints. There is no preprinted form for this submittal.

The offeror must provide past performance or affirmatively state it possesses no relevant, directly related, or similar past performance experience.

End of Volume 1 – Technical Proposal Requirements.

F. VOLUME II, BUSINESS AND PRICE PROPOSAL – FORMAT, ORGANIZATION, CONTENTS

1. **FORMAT**: Submit (1) one electronic copy. No hard copies shall be submitted.

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2. ORGANIZATION: Include a Table of Contents with tabs for hard copy formats and folders and files for electronic formats named as follows:

SF 1442

AMENDMENTS

SECTION B PRICE SCHEDULE

SF 24 BID BOND (OR OTHER SUITABLE BID GUARANTEE)

SECTION K REPRESENTATIONS AND CERTIFICATIONS

GENERAL REFERENCES

SUBCONTRACTING PERCENTAGE WORKSHEET

3. CONTENTS:

SF 1442: Standard Form 1442, Solicitation, Offer, and Award, (Construction, Alteration, or Repair): Complete blocks 14 through 20C only. An official having the authority to contractually bind the Offeror's company must sign the SF 1442 in accordance with the procedures prescribed in FAR 4.102.

AMENDMENTS: Acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30.

SECTION B CONTRACT PRICE SCHEDULE: Enter the proposed dollar amount for each line item in the Price Schedule, including any optional items, if applicable. Also provide a separate Schedule of Values (SOV) for each line item in the Section B Contract Price Schedule. Each SOV shall show the line-item price broken down by major work components.

BID GUARANTEE: Submit Standard Form 24, Bid Bond duly executed between the Offeror and the bonding company, or other suitable bid guarantee allowable under provision 52.228-1.

SECTION K REPRESENTATIONS AND CERTIFICATIONS: Submit a completed copy of provision 52.204-8 shown in section "K" of this solicitation. Complete all required representations and certifications if they are not available at www.SAM.gov. Your firm must maintain current, active registration at www.SAM.gov to be eligible for award. In accordance with FAR 4.1102 Offerors are required to be registered in www.SAM.gov at the time an offer is submitted.

GENERAL REFERENCES: Complete and submit the attached "General References," form. Information will be used in determining Responsibility pursuant to FAR 9.103.

SUBCONTRACTING PERCENTAGE WORKSHEET: Complete and submit the attached "Report on Limitation on Subcontracting" form. The form itself requests input of amounts paid; however, for solicitation purposes, input projected amounts based on your proposed pricing and that of your anticipated Subcontractors.

The NPS subcontracting goals for Fiscal Year 2024 are: Small Businesses (57%), Small Disadvantaged Businesses (34%), Women-Owned Businesses (10%), HUBZone (4%), and Service-Disabled Veteran-Owned Businesses (4%), Indian Small Business Economic Enterprises (ISBEE) (10%), AbilityOne .6%, 8(a)Competitively Awarded 12.5%

Subcontracting plans that contain goals less than the NPS goals shall include rationale as to why the above goals cannot be met.

End of Volume II – Business and Price Proposal requirements.

End of Section L

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SECTION M – EVALUATION FACTORS FOR AWARD

A. BASIS FOR AWARD

1. The Government will conduct a source selection using the Best Value Continuum Tradeoff Process defined at FAR Part 15.1. The Contracting Officer will obligate and award a contract to the Offeror who submits a proposal the Source Selection Authority (SSA) determines conforms to solicitation requirements; is fair and reasonable; and provides the best value to the government considering all evaluation factors combined as detailed below. For this acquisition, the CO is the SSA.
2. The Government may accept other than the lowest priced proposal when the perceived benefits of a higher priced proposal merit the price differential.
3. Additionally, pursuant to FAR 52.215-1(f), Contract Award, contained herein:
 - The Government may reject any or all proposals if such action is in the Government's interest.
 - The Government may waive informalities and minor irregularities in proposals received.
 - The Government intends to evaluate proposals and award a contract without discussions with Offerors (except clarifications as described in FAR 15.306(a)). Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the CO later determines them to be necessary.

B. EVALUATION PROCESS

All proposal evaluations will be conducted in strict confidence. The number and identifies of Offerors and proposal contents will be revealed only to individuals involved in the evaluation process. No information will be revealed to other Offerors. The evaluation process is as follows:

1. Initial Review: Proposals will be reviewed for compliance with the solicitation to verify that all submission requirements are met; all certifications are complete, and the Offeror is responsive and otherwise eligible to receive award of a Federal contract. If the proposal does not comply or lacks sufficient information to be meaningfully evaluated, it may be eliminated from further consideration for award.
2. Non-Price Evaluation: A Technical Evaluation Panel (TEP) comprised of Government personnel, with assistance from non-Government advisors when required, will conduct a non-price evaluation of proposals. The TEP will review, evaluate, assess risk, and rate all acceptable proposals against the technical factors contained in this solicitation. The TEP will not have knowledge of any pricing until the technical evaluation is complete.
3. Past Performance Evaluation: The TEP and CO/SSA will also evaluate Offerors' past performance. The evaluation will assess the government's confidence level for offers to successfully perform contract requirements based on survey responses, CPARS data, and other pertinent, relevant information.
4. Price Evaluation: Upon completion of the technical evaluation, the TEP and CO/SSA will review pricing as evaluated in Volume 2 (below). Options will also be evaluated at this time. The TEP will make an award recommendation to the CO/SSA.
5. Tradeoff Analysis: The CO/SSA will review the TEP's award recommendation and independently perform a tradeoff analysis between each proposal's (1) demonstrated technical advantages, disadvantages, strengths, weaknesses; (2) past performance confidence assessment; and (3) proposed pricing.
6. Selection: The CO/SSA will select the proposal that provides the overall best value, considering all evaluation factors, to the Government for award. The Government may elect to accept other than the lowest priced proposal when the perceived benefits of a higher priced proposal merit the price differential.
- 7.

C. EVALUATION FACTORS

1. RELATIVE IMPORTANCE

Evaluation factors are listed in descending order of importance. Proposed pricing is included as an evaluation factor; however, when all non-price factors are combined, they are significantly more important than price.

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1. VOLUME I – NON-PRICE PROPOSAL

a. Technical Factors:

FACTOR 1 - EVALUATION - PROJECT EXPERIENCE:

Project experience demonstrating; (1) capability to successfully complete relevant projects of similar scope and magnitude to this solicitation; (2) similar experience completed on sites of National and Historic significance will be considered more favorably; (3) similar project experience performed in-house or with the proposed subcontractor/s will be considered more favorably. Those not demonstrating these attributes present higher levels of risk and will be less favorably rated.

NOTE: The same projects evaluated for experience under this factor shall also be evaluated for Past Performance (Factor #5). Projects determined more relevant under this factor will be given - a higher confidence Past Performance rating.

FACTOR 2 - EVALUATION – TECHNICAL APPROACH

Technical approaches that comply with applicable contract requirements; are realistic, appropriate, and efficient; and demonstrate logic and scope understanding present lower levels of risk and will be more favorably rated. Approaches not demonstrating these attributes present higher levels of risk and will be less favorably rated

FACTOR 3 – EVALUATION - PROJECT TEAM

Project Team experience demonstrating capability in same or similar key personnel positions on successful relevant projects of similar scope and magnitude to this solicitation will be more favorably rated. Those not demonstrating these attributes present higher levels of risk and will be less favorably rated

FACTOR 4 - EVALUATION - CONSTRUCTION SCHEDULE

The offeror will be evaluated based on their project team's ability to effectively schedule the project to ensure on-time delivery. The evaluation will be based on the offeror's detailed construction schedule. Construction schedules and narrative descriptions documenting (1) a critical path and logical sequencing; (2) account for procurement lead-time; and (3) demonstrate risk mitigation and successful completion within the required period of performance present lower levels of risk and will be more favorably rated. Schedules which do not demonstrate these attributes present higher levels of risk and will be less favorably rated.

FACTOR 5 – EVALUATION – PAST PERFORMANCE

Past performance demonstrating higher levels of success and quality on more relevant projects similar in scope and magnitude to this solicitation present lower levels of risk and will be more favorably rated. Projects that are more relevant to the requirements of this solicitation will be given more weight in the overall past performance rating. Project Experience ratings (Factor 1) will be considered in determining relevancy for projects submitted under this factor. If an Offeror has no past performance on similar work relevant to this solicitation, they will be evaluated neither favorably nor unfavorably.

Past performance on contracts with the Federal Government, other public agencies, or private organizations will be considered. All submitted references may not be contacted. Sources other than submitted references may be contacted.

During proposal evaluations, exchanges between the Government and Offerors may occur to clarify the relevance of past performance information and/or address adverse past performance information which an Offeror has not yet had an opportunity to respond to.

3. VOLUME II – BUSINESS AND PRICE PROPOSAL:

FACTOR 6 – EVALUATION of PRICE: Proposed pricing is an evaluation factor. Proposed pricing will be evaluated for fair and reasonableness. Reasonableness will be determined in accordance with the proposal analysis techniques identified in the FAR, DIAR and all other applicable statutes, regulations and policies.

If multiple contract line items are included in the price schedule, prices will be evaluated to determine whether any line

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items are unbalanced in accordance with FAR 15.404-1(g). Offerors are cautioned to distribute costs appropriately

Submittals in Volume II will not be rated.

- a. Standard Form (SF) 1442, Solicitation, Offer, and Award, (Construction, Alteration, or Repair): The SF-1442 will be reviewed for completeness.
- b. AMENDMENT ACKNOWLEDGEMENT: Amendment acknowledgements will be reviewed for timely and proper acknowledgement.
- c. SECTION B PRICE SCHEDULE: Proposed pricing is an evaluation factor. Options will be included in the price evaluation. Proposed pricing will be evaluated for fair and reasonableness. Reasonableness will be determined in accordance with the proposal analysis techniques identified in the FAR, DIAR and all other applicable statutes, regulations and policies. If multiple contract line items are included in the price schedule, prices will be evaluated to determine whether any line items are unbalanced in accordance with FAR 15.404-1(g). Offerors are cautioned to distribute costs appropriately.
- d. BID GUARANTEE: The SF 24 Bid Bond (OR OTHER SUITABLE BID GUARANTEE) will be reviewed for completeness and acceptability.
- e. SECTION K REPRESENTATIONS AND CERTIFICATIONS: Information will be reviewed for completeness and award eligibility.
- f. GENERAL REFERENCES: Points of contact will be queried to determine Responsibility pursuant to FAR 9.103.
- g. SUBCONTRACTING PERCENTAGE WORKSHEET (SET-ASIDE): This worksheet will be reviewed for completeness and correlation to proposed pricing.

(End of Provision)

End of Section M